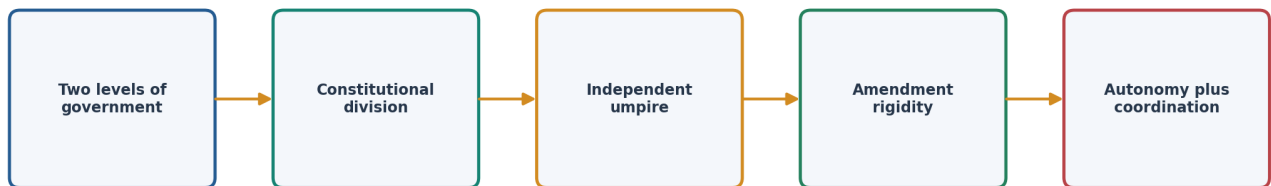


COMPLETE LEARNING SESSION

Federal System - Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

The federal-design test



Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

CONTENTS / SESSION INDEX

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

Polity 12 - Federal System - Complete Topic Package	4
DEEP-REVIEW LEARNING CONTRACT	6
EVIDENCE, PYQ AND CURRENT-STATUS CONTROL	6
BASIC LEARNING SESSION	7
SESSION 1 - MEANING: WHAT MAKES A POLITICAL SYSTEM FEDERAL?	7
SESSION 2 - FORMATION: COMING TOGETHER AND HOLDING TOGETHER	9
SESSION 3 - SEVEN FEDERAL FEATURES	11
SESSION 4 - CENTRALISING FEATURES: WHY INDIA IS FEDERAL WITH A UNION BIAS	12
SESSION 5 - LEGISLATIVE DISTRIBUTION: ARTICLES 245-255 AND THE SEVENTH SCHEDULE	14
SESSION 6 - WHEN PARLIAMENT MAY LEGISLATE ON THE STATE LIST	16
SESSION 7 - ADMINISTRATIVE AND FINANCIAL DISTRIBUTION: THE MISSING OPERATIONAL BRIDGE	18
SESSION 8 - FEDERALISM AS BASIC STRUCTURE: CASE CHRONOLOGY	20
SESSION 9 - HOW INDIAN FEDERALISM ACTUALLY WORKS	22
SESSION 10 - INSTITUTIONS OF SHARED RULE	24
SESSION 11 - ASYMMETRIC FEDERALISM	25
SESSION 12 - FISCAL FEDERALISM	27
SESSION 13 - REPRESENTATIONAL FEDERALISM AND DELIMITATION	29
SESSION 14 - CURRENT FEDERAL-FRICTION CONTROLS	31
POLITY HOSTILE SEMANTIC-REVIEW CORE CONTROL	33
Semantic-completeness ownership and PYQ control	33
BASIC MCQS / REMEDIATION	34
Original hard MCQ set - strict A -> B -> C -> D rotation	34
Remedial MCQ loop - strict A -> B -> C -> D rotation	38
PYQS AND ANSWER PRACTICE	39
Routed PYQs with model solutions	39
Original Mains practice with examiner-grade models	52
OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER	62
14. Advanced classifications and scholars - optional	62

CONSOLIDATED REGISTER NOTES	63
Federal identity	63
Seven federal features	63
Centralising recall	63
Legislative architecture	63
Case strip	64
Operating modes	64
Shared-rule institutions	64
Asymmetry	64
Fiscal federalism	64
Current control	65
PYQ routes	65
Mains answer spines	65
Final trap checklist	65
COMPLETE TOPIC ASCII MASTER FLOW DIAGRAM	66

Polity 12 - Federal System - Complete Topic Package

Subject: Indian Polity | **Topic:** 12 | **GS-II + Prelims** | **Content control:** 2026-08-28 **Approval:** false - awaiting explicit user approval. **Evidence key:** [FACT] constitutional, judicial or source-verified proposition; [ANALYSIS] reasoned exam synthesis; [CURRENT] dated status; [LIMIT] qualification preventing overstatement.

SOURCE, PYQ AND CURRENT-AFFAIRS AUDIT - 28 AUGUST 2026

- Source order followed: certified Core owner Polity/basic/Federal-System.md -> optional Advanced owner Polity/advanced/12_Federal-System.md -> local PYQ routing ledgers -> Constitution, Supreme Court and official current controls -> Qdrant not used.
- [LIMIT] Foundation and Core are independently answer-complete. Optional Advanced adds scholar labels and deeper classifications only. Skipping it does not remove a provision, doctrine, case, current control, PYQ route or answer framework required for marks.
- [CURRENT] Legal and policy status is controlled to **28 August 2026, Asia/Kolkata**.
- [CURRENT] The standard examination counts used here are **Union List 100, State List 61 and Concurrent List 52**. Omitted and inserted entry numbers can make a literal count of visible live clauses look different; quote the standard subject counts unless a question reproduces the Schedule itself.
- [CURRENT] For Governor assent, the controlling position is the Constitution Bench advisory opinion of **20 November 2025**: no judicially fixed timelines and no deemed assent, but prolonged unexplained inaction can attract limited judicial direction to act.
- [CURRENT] The Constitution (131st Amendment) Bill, 2026 and connected delimitation package were defeated in Lok Sabha. Their proposed numbers are not law. The Census 2027 schedule does not establish a publication date, delimitation date or a women's-reservation election date.
- [LIMIT] This package owns federal **architecture and concepts**. Detailed legislative, administrative and financial Centre-State mechanisms are cross-linked to Polity 13; Governor procedure to Polity 19; Finance Commission to Polity 29; GST Council to Polity 33; inter-State bodies and water disputes to Polity 14.
- [CURRENT] The Sixteenth Finance Commission submitted its report on **17 November 2025** for the 2026-31 award period and recommended retaining States' vertical share at **41% of the divisible pool**.
- [CURRENT] The GST Council and Inter-State Council Secretariat remain official consultation anchors. Their existence does not make Union-State bargaining equal or every recommendation binding.
- Package target: **10 routed PYQs, 28 original hard MCQs, 8 remedials, **7 original solved Mains questions, and 14 original visuals****.

LEARNING ROADMAP

Stage	Complete coverage	Exam outcome
Meaning	Federal test, federal versus unitary, federation versus confederation	Defines before evaluating
Formation	Coming-together and holding-together models	Places India correctly
Federal features	Seven structural safeguards	Solves direct Prelims questions
Centralising features	Fourteen features grouped by logic	Explains the strong-Union tilt
Power distribution	Articles 245-255, Seventh Schedule, residuary power and doctrines	Solves lists and conflict questions
State-field entry	Articles 249, 250, 252, 253 and 356	Prevents exception traps
Administrative relations	Articles 256-263 and 355-357	Distinguishes directions, delegation, consultation, duty and emergency remedy
Judicial doctrine	West Bengal, Kesavananda Bharati (1973), Rajasthan and S.R. Bommai (1994)	Uses federalism as Basic Structure
Working modes	Cooperative, competitive, bargaining, coercive and confrontational	Answers the 2020 GS-II demand
Institutions	ISC, Zonal Councils, GST Council, Finance Commission, NITI and courts	Links architecture to operation
Asymmetry	Fifth/Sixth Schedules, Article 371 family and differentiated UT designs	Explains accommodation
Fiscal dimension	Assignment, devolution, grants, cesses and 16th FC control	Adds contemporary depth
Representation	Rajya Sabha, seat freeze, delimitation and demographic fairness	Handles emerging federalism debate
Advanced	Scholars, quasi-federal debate, multi-level and dialogic federalism	Optional analytical lift
Practice	All ten routed PYQs, 36 MCQs and seven solved Mains	Converts knowledge into marks

OWNERSHIP AND CROSS-LINKS

- This chapter is self-sufficient on the nature, structure, tilt, interpretation and working modes of Indian federalism.
- Detailed Articles 256-263, Union directions, All-India Services and emergency effects -> **Polity 13**.
- Inter-State Council, Zonal Councils and water disputes in operational depth -> **Polity 14**.
- Governor appointment, discretion, assent and floor-test procedure -> **Polity 19**.
- Finance Commission formula, grants and local-body transfers -> **Polity 29**.
- GST constitutional mechanics and Council voting -> **Polity 33**.
- Fifth/Sixth Schedules and Article 371 State-specific detail -> **Polity 43-44**.
- [LIMIT] Cross-linking avoids duplication; every rule necessary to answer Topic 12 remains explained here.

DEEP-REVIEW LEARNING CONTRACT

Control	Binding rule for this package
Syllabus boundary	Complete Polity Basic/Core is answer-complete before optional Advanced depth.
Text hierarchy	Constitution/Act/rule/notification -> binding judgment -> authoritative institution -> Constituent Assembly material -> standard textbook.
Legal precision	State exact Article, Part, Schedule, amendment, case, date, institution, procedure, exception and current operative status.
Doctrine method	Text -> institutional mechanism -> controlling case -> exception/limit -> present legal status.
Chronology	Enactment, commencement, amendment, judgment and implementation dates remain separate.
Boundary method	Topic ownership and cross-owner bridges are explicit; adjacent PYQs never become fabricated direct routes.
Practice contract	Every solved item has demand decoding, examiner-grade model, timed compression plan, marks rationale and answer-specific improvement.
Approval	This immutable successor remains approved: false pending explicit approval.

Canonical Basic/Core owner: upsc-ai-kit\knowledge\Polity\basic\Federal-System.md **Canonical topic owner:** upsc-ai-kit\knowledge\Polity\basic\Federal-System.md **Optional Advanced owner:** upsc-ai-kit\knowledge\Polity\advanced\12_Federal-System.md **Official syllabus mapping:** upsc-ai-kit\knowledge\Polity\OFFICIAL-UPSC-SYLLABUS-MAPPING.md

EVIDENCE, PYQ AND CURRENT-STATUS CONTROL

- **Four independent ledgers:** literal syllabus/index, indispensable prerequisites, standard textbook taxonomy and complete routed 2018-2026 PYQ demands were built before repair.
- **Hostile search:** missing Articles, Parts, Schedules, amendments, cases, institutional mechanisms, exceptions, chronology, source status and cross-owner boundaries are hard failures.
- **Answer rule:** claim -> exact constitutional/statutory/case evidence -> institutional analysis -> exception or qualification.
- **Current-status note, rechecked 2026-09-05:** Rechecked 2026-09-05: federalism remains basic structure within a constitutionally strong Union. The 2025 Article 143 opinion controls State-Bill assent; the Sixteenth Finance Commission retains 41 percent vertical devolution for 2026-31. The 131st Amendment Bill, 2026 was defeated and did not amend representation or delimitation law.

Authoritative live sources:

- <https://legislative.gov.in/documents/constitution-of-india>
- https://api.sci.gov.in/supremecourt/2025/39157/39157_2025_1_1501_66169_Judgement_20-Nov-2025.pdf
- <https://gstcouncil.gov.in/>
- <https://fincomindia.nic.in/asset/doc/commission-reports/16th-FC/16fc-EM.pdf>
- <https://sansad.in/getFile/BillsTexts/LSBillTexts/Asintroduced/AS%20INTRO416202612944PM.pdf?source=legislation>

BASIC LEARNING SESSION



Refreshed teaching navigation

Distinct embedded teaching-navigation image. The separate continuous Cārvāka-style flowchart package remains an independent at-a-glance artifact.

SESSION 1 - MEANING: WHAT MAKES A POLITICAL SYSTEM FEDERAL?

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Federalism constitutionally protects authority at Union and State levels instead of leaving regional power to revocable delegation.

Technical definition: Its controlling elements are self-rule in assigned spheres, shared rule through common institutions and judicially enforceable constitutional supremacy.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The meaning of a federal political system lies in protected regional competence, not in a weak national government or merely regional offices.

MUST-WRITE KEYWORDS

- federalism
- self-rule
- shared rule
- constitutional allocation
- dual polity
- judicial review

How to use them: Frame the answer through federalism; define self-rule, connect shared rule with constitutional allocation to explain the mechanism, and use dual polity for the decisive comparison or qualification.

The federal-design test



Federal design is tested through levels, constitutional allocation, adjudication, rigidity and coordinated autonomy.

The controlling definition

- [FACT] Federal government constitutionally divides public power between a general government and regional governments so that each operates directly on citizens within an assigned sphere.
- [FACT] The allocation comes from the Constitution, not from ordinary delegation by the Union.
- [ANALYSIS] The essence is **constitutionally protected autonomy plus mechanisms of shared rule**. Neither complete separation nor constant harmony is required.
- [LIMIT] A federation is not a confederation. In a federation, the Constitution creates one sovereign legal order; constituent units ordinarily have no unilateral right to secede.

Federal, unitary and confederal systems

Test	Federal	Unitary	Confederation
Source of regional power	Constitution	Central law/devolution	Treaty among sovereign members
Legal sovereignty	One constitutional order	Central State	Member States retain sovereignty
Regional autonomy	Constitutionally protected	Legally alterable by centre	Very high
Central action on citizens	Direct	Direct	Often mediated through members
Secession	Not ordinarily permitted	Not applicable	May remain politically possible

Core thesis: Federalism is not measured by the weakness of the Union; it is measured by whether regional autonomy has constitutional, judicial and political protection.

CLOSING RECALL FLOW - MEANING: WHAT MAKES A POLITICAL SYSTEM FEDERAL?

START / CONCEPT: Meaning: what makes a political system federal?

|

v

EXACT TERMS: federalism · self-rule · shared rule · constitutional allocation · dual polity · judicial review

|

v

MECHANISM / ARGUMENT: The Constitution allocates direct law-making and executive authority to both levels and creates institutions to coordinate or adjudicate overlap.

|

v

CONSEQUENCE / CONTRAST: State autonomy survives ordinary Union politics while national coordination remains possible through enumerated powers.

|

v

UPSC TRAP / ANSWER-USE: Do not confuse a federation with a confederation or administrative decentralisation.

|

v

ANSWER-GRABBING FORMULATION: The meaning of a federal political system lies in protected regional competence, not in a weak national government or merely regional offices.

SESSION 2 - FORMATION: COMING TOGETHER AND HOLDING TOGETHER

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Federal formation may be coming together, where previously sovereign units pool power, or holding together, where an existing polity distributes power.

Technical definition: India is a holding-together, Union-weighted federation whose States did not create a secession-permitting compact.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

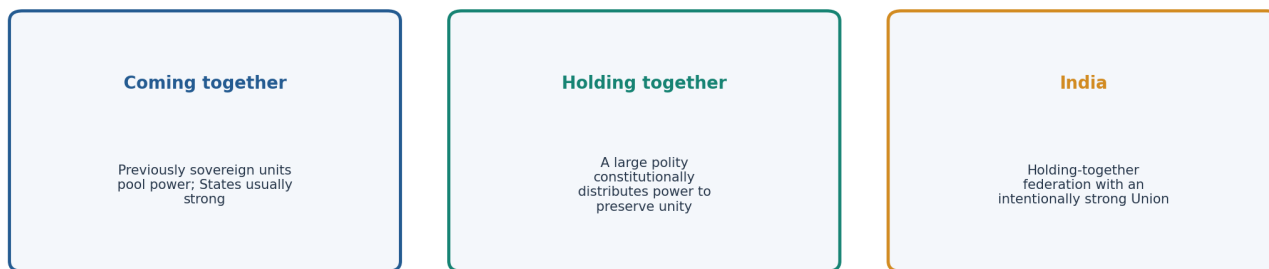
Article 1 calls India a Union of States: unity is indestructible, while State boundaries remain constitutionally alterable.

MUST-WRITE KEYWORDS

- coming together
- holding together
- Article 1
- Article 3
- Union of States

How to use them: Frame the answer through coming together; define holding together, connect Article 1 with Article 3 to explain the mechanism, and use Union of States for the decisive comparison or qualification.

How federations are formed



Coming-together and holding-together federations differ in origin and bargaining structure.

Model	Formation logic	Typical structural tendency	Example use
Coming together	Previously sovereign units pool authority	Stronger constituent units; often equal second-chamber representation	United States, Switzerland, Australia
Holding together	A large polity distributes authority to preserve unity and diversity	Stronger federal centre; asymmetry more likely	India, Belgium, Spain in comparative discussion

- [FACT] Article 1 calls India a **Union of States**, not a federation formed by an agreement among sovereign States.
- [FACT] Parliament may alter State areas, boundaries or names under Articles 2-4 through the constitutionally prescribed process; affected State views are sought but are not binding.
- [ANALYSIS] India is best classified as a **holding-together federation with a strong Union**: federal distribution was chosen to govern diversity without creating a secession-based compact.
- [LIMIT] "Indestructible Union of destructible States" is a useful summary, not constitutional text.

CLOSING RECALL FLOW - FORMATION: COMING TOGETHER AND HOLDING TOGETHER

```

START / CONCEPT: Formation: coming together and holding together
|
v
EXACT TERMS: coming together · holding together · Article 1 · Article 3 · Union of States
|
v
MECHANISM / ARGUMENT: Articles 2-4 permit territorial change through presidential recommendation,
reference for State views and parliamentary law.
|
v
CONSEQUENCE / CONTRAST: India can adapt territory without requiring affected-State consent, yet
State consultation remains mandatory.
|
v
UPSC TRAP / ANSWER-USE: "Indestructible Union of destructible States" is a summary, not
constitutional text.
|
v
ANSWER-GRABBING FORMULATION: Article 1 calls India a Union of States: unity is indestructible,
while State boundaries remain constitutionally alterable.

```

SESSION 3 - SEVEN FEDERAL FEATURES

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: India combines a dual polity with a written supreme Constitution, divided powers, selective rigidity, courts and bicameral representation.

Technical definition: Federal character rests on protected competence and adjudication rather than equal Rajya Sabha seats or separate court systems.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The seven features show why Union strength does not make States administrative departments.

MUST-WRITE KEYWORDS

- dual polity
- Seventh Schedule
- constitutional supremacy
- ratification
- independent judiciary
- Rajya Sabha

How to use them: Frame the answer through dual polity; define Seventh Schedule, connect constitutional supremacy with ratification to explain the mechanism, and use independent judiciary for the decisive comparison or qualification.

Seven federal features



Seven features protect constitutionally distributed government.

1. **Dual polity:** Union and State governments each exercise constitutionally assigned authority.
2. **Written Constitution:** allocation and limits are available in an authoritative text.
3. **Division of powers:** Articles 245-255 and the Seventh Schedule allocate legislative competence.
4. **Constitutional supremacy:** Union and States are limited by the Constitution.
5. **Rigidity in federal provisions:** specified Article 368 amendments require ratification by at least half of State legislatures.
6. **Independent judiciary:** constitutional courts police legislative boundaries and federal disputes.
7. **Bicameralism:** Rajya Sabha supplies representation of States in Parliament.

Qualifications UPSC rewards

- Rajya Sabha representation is broadly population-weighted, not equal for every State as in the US Senate.
- State autonomy is protected but not sovereign; Parliament has constitutionally enumerated routes into the State field.
- The judiciary is integrated rather than dual, yet integration can strengthen uniform constitutional adjudication.

- Indian amendment rigidity is selective: many provisions are amendable without State ratification.

CLOSING RECALL FLOW - SEVEN FEDERAL FEATURES

START / CONCEPT: Seven federal features



EXACT TERMS: dual polity · Seventh Schedule · constitutional supremacy · ratification · independent judiciary · Rajya Sabha



MECHANISM / ARGUMENT: The Constitution allocates power, protects selected federal provisions through State ratification and lets courts police boundaries.



CONSEQUENCE / CONTRAST: States retain constitutionally grounded authority despite unequal representation and integrated institutions.



UPSC TRAP / ANSWER-USE: Federalism does not require equal upper-house representation or State sovereignty.



ANSWER-GRABBING FORMULATION: The seven features show why Union strength does not make States administrative departments.

SESSION 4 - CENTRALISING FEATURES: WHY INDIA IS FEDERAL WITH A UNION BIAS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The Constitution gives the Union stronger legislative, emergency, institutional and fiscal tools while preserving State competence.

Technical definition: Union bias is an internal feature of India's federal design, bounded by constitutional text, judicial review and political safeguards.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

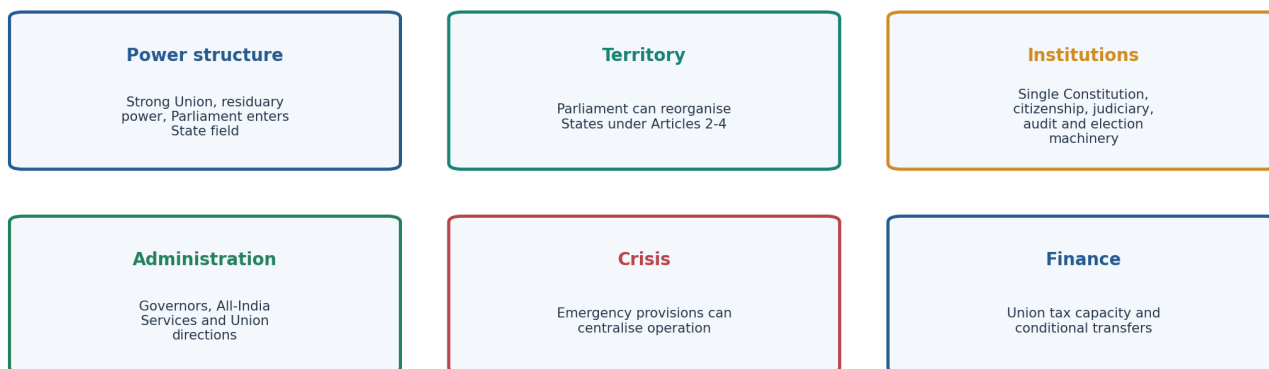
India's centralising provisions modify federal balance; they do not erase the federal basic structure.

MUST-WRITE KEYWORDS

- **Union bias**
- **residuary power**
- **emergency**
- **All-India Services**
- **Governor**
- **fiscal imbalance**

How to use them: Frame the answer through Union bias; define residuary power, connect emergency with All-India Services to explain the mechanism, and use Governor for the decisive comparison or qualification.

Centralising design: grouped, not memorised as a loose list



Centralising features are easier to retain when grouped by power, territory, institutions, administration, crisis and finance.

Fourteen features, grouped

Group	Centralising feature	Constitutional significance
Power	Strong Union List and superior Union competence in overlap	National coordination capacity
Power	Residuary legislative power with Parliament	Article 248 + Union Entry 97
Power	Parliament may legislate on State subjects through Articles 249, 250, 252, 253 and 356	State exclusivity has express exceptions
Territory	Parliament may reorganise States	Union is not a compact requiring State consent
Constitution	One Constitution for Union and States	No separate State constitutions in the ordinary scheme
Citizenship	Single citizenship	Common national political membership
Judiciary	Integrated court hierarchy	Uniform constitutional and legal order
Administration	Governor appointed by President and holding office during presidential pleasure	Potential Union influence, subject to constitutional limits
Administration	All-India Services	Common administrative cadre serving Union and States
Administration	Union directions in specified fields	Coordination may become leverage
Institutions	Integrated Election Commission, CAG and other national machinery	Uniform standards and accountability
Crisis	Emergency provisions	Federal operation can become strongly centralised
Finance	Greater Union tax capacity and transfer dependence	Vertical fiscal imbalance
Representation	Rajya Sabha gives unequal State representation and Lok Sabha is population-based	Large States possess greater numerical weight

- [ANALYSIS] These do not cancel federalism because each centralising power is itself constitutional, reviewable and politically contested.
- [LIMIT] Do not call the Governor merely the "Centre's agent." That phrase describes a misuse critique; the office is constitutionally the State's head.

CLOSING RECALL FLOW - CENTRALISING FEATURES: WHY INDIA IS FEDERAL WITH A UNION BIAS

START / CONCEPT: Centralising features: why India is federal with a Union bias

|

v

EXACT TERMS: Union bias · residuary power · emergency · All-India Services · Governor · fiscal imbalance

|

v

MECHANISM / ARGUMENT: Enumerated Union powers, integrated institutions and emergency routes permit coordination, especially during national externalities.

|

v

CONSEQUENCE / CONTRAST: The Union can act strongly, but must justify its action through a constitutional route and remain reviewable.

|

v

UPSC TRAP / ANSWER-USE: Do not call India unitary in spirit or the Governor simply the Centre's agent.

|

v

ANSWER-GRABBING FORMULATION: India's centralising provisions modify federal balance; they do not erase the federal basic structure.

SESSION 5 - LEGISLATIVE DISTRIBUTION: ARTICLES 245-255 AND THE SEVENTH SCHEDULE

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The Seventh Schedule distributes legislative subjects among Union, State and Concurrent Lists, with GST separately structured by Article 246A.

Technical definition: Article 246 establishes predominance rules; Article 248 assigns residuary power; competence doctrines and Article 254 resolve overlap.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

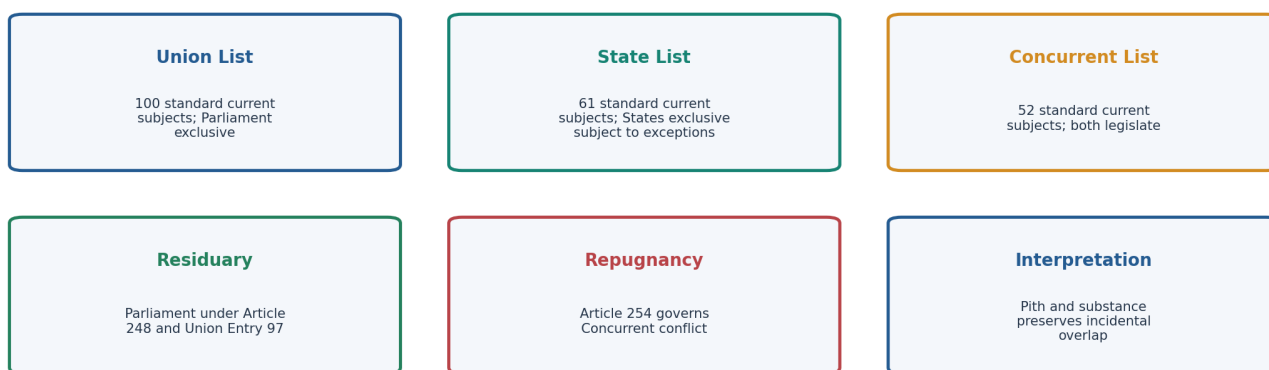
Legislative federalism works by allocation first, interpretive reconciliation second and supremacy only where conflict remains.

MUST-WRITE KEYWORDS

- Articles 245-246
- Seventh Schedule
- Article 248
- Article 254
- pith and substance
- repugnancy

How to use them: Frame the answer through Articles 245-246; define Seventh Schedule, connect Article 248 with Article 254 to explain the mechanism, and use pith and substance for the decisive comparison or qualification.

Legislative distribution



The three Lists, residuary power, repugnancy and interpretive doctrines form one competence system.

The Article 246 hierarchy

- [FACT] Article 245 addresses territorial extent of laws. Parliamentary law is not invalid merely for extra-territorial operation, though a real constitutional nexus is required.
- [FACT] Article 246(1) gives Parliament exclusive power over Union List matters, notwithstanding clauses (2) and (3).
- [FACT] Article 246(2) gives Parliament and State legislatures concurrent power over List III.
- [FACT] Article 246(3), subject to clauses (1) and (2), gives States exclusive power over List II for the State or its part.
- [FACT] Article 246(4) permits Parliament to legislate for territories not included in a State even on State List matters.
- [FACT] Article 246A separately creates special GST competence.

Standard current list counts

List	Standard current examination count	Character	Examples
Union List	100	Parliament exclusive	Defence, foreign affairs, currency, atomic energy
State List	61	State exclusive subject to constitutional exceptions	Public order, police, public health, agriculture, prisons
Concurrent List	52	Both Parliament and States	Criminal law, marriage, education, forests

- [LIMIT] Amendments preserve historical numbering and mark some entries "omitted"; inserted entries also carry lettered numbers. This explains why a literal visual count may differ from the standard subject count.
- [FACT] Article 248 and Union List Entry 97 place residuary legislative power with Parliament, including residuary taxation subject to later GST design.

Five competence doctrines

Doctrine	Function	Exam-safe formulation
Pith and substance	Identifies a law's true nature	Incidental encroachment does not invalidate a law within competence
Colourable legislation	Tests indirect transgression	What cannot be done directly cannot be done by disguise
Territorial nexus	Connects State law to extra-State facts	Nexus must be real, not illusory
Harmonious construction	Reconciles apparently overlapping entries	Entries receive broad meaning while avoidable conflict is reduced
Repugnancy	Resolves Concurrent List conflict	Article 254 ordinarily gives parliamentary law precedence

Article 254 and Presidential assent

- [FACT] If a State law is repugnant to a parliamentary law on a Concurrent subject, the parliamentary law ordinarily prevails and the State law is void to the extent of repugnancy.
- [FACT] A repugnant State law reserved for and receiving Presidential assent can operate in that State.
- [FACT] Parliament may later override that assented State law.
- [LIMIT] Article 254 is not a universal conflict clause for every Union-State disagreement; it is principally a Concurrent List doctrine.

CLOSING RECALL FLOW - LEGISLATIVE DISTRIBUTION: ARTICLES 245-255 AND THE SEVENTH SCHEDULE

START / CONCEPT: Legislative distribution: Articles 245-255 and the Seventh Schedule

|

v

EXACT TERMS: Articles 245-246 · Seventh Schedule · Article 248 · Article 254 · pith and substance · repugnancy

|

v

MECHANISM / ARGUMENT: Courts identify a law's true nature, reconcile broad entries and apply the Concurrent-list conflict rule only when coexistence fails.

|

v

CONSEQUENCE / CONTRAST: Incidental overlap can survive while irreconcilable repugnancy receives a predictable constitutional answer.

|

v

UPSC TRAP / ANSWER-USE: Article 254 is not a universal Union-over-State conflict clause.

|

v

ANSWER-GRABBING FORMULATION: Legislative federalism works by allocation first, interpretive reconciliation second and supremacy only where conflict remains.

SESSION 6 - WHEN PARLIAMENT MAY LEGISLATE ON THE STATE LIST

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Parliament may enter the State field only through distinct constitutional routes with separate triggers and consequences.

Technical definition: Articles 249, 250, 252, 253 and 356-357 respectively use national interest, emergency, State request, treaty implementation and constitutional breakdown.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

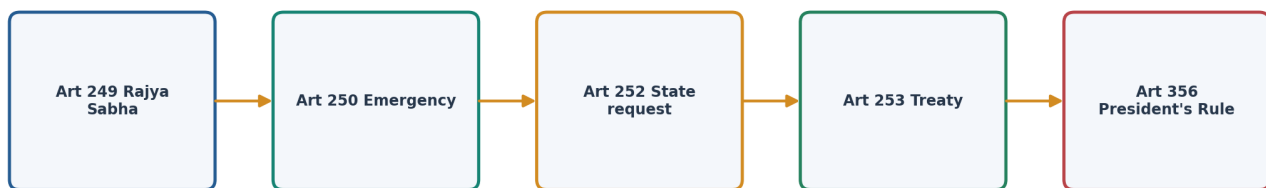
List II exclusivity has doors, not an open corridor for Parliament.

MUST-WRITE KEYWORDS

- Article 249
- Article 250
- Article 252
- Article 253
- Articles 356-357

How to use them: Frame the answer through Article 249; define Article 250, connect Article 252 with Article 253 to explain the mechanism, and use Articles 356-357 for the decisive comparison or qualification.

How Parliament may enter the State List



Five constitutional routes permit Parliament to enter the State field for different reasons and durations.

Route	Trigger	Duration / consequence	Key trap
Article 249	Rajya Sabha resolution by two-thirds of members present and voting that national interest requires it	Resolution up to one year, renewable; law survives six months after resolution ends	State power is suspended only to the extent of inconsistency
Article 250	Proclamation of Emergency in operation	Law survives six months after Emergency ends	Requires Article 352 emergency, not every emergency
Article 252	Two or more State legislatures request Parliament	Applies to requesting/adopting States	Only Parliament can amend or repeal such law
Article 253	Implementing treaty, agreement or international decision	No State consent requirement in text	Can reach State subjects
Article 356	Parliament exercises State legislature's power during President's Rule	Subject to constitutional restoration and review	S.R. Bommai (1994) limits abuse

- [ANALYSIS] Articles 249 and 252 contain federal safeguards: the first uses the States' chamber; the second starts with State initiative.
- [LIMIT] Article 253 is powerful but remains subject to constitutional rights, judicial review and the actual treaty-implementation nexus.

CLOSING RECALL FLOW - WHEN PARLIAMENT MAY LEGISLATE ON THE STATE LIST

START / CONCEPT: When Parliament may legislate on the State List

|

v

EXACT TERMS: Article 249 · Article 250 · Article 252 · Article 253 · Articles 356-357

|

v

MECHANISM / ARGUMENT: Each provision identifies who initiates entry, its territorial scope, duration and who may later amend or repeal the law.

|

v

CONSEQUENCE / CONTRAST: National coordination becomes possible without permanently transferring the State List to Parliament.

|

v

UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: article 250 requires an Article 352 Emergency.

|

v

ANSWER-GRABBING FORMULATION: List II exclusivity has doors, not an open corridor for Parliament.

SESSION 7 - ADMINISTRATIVE AND FINANCIAL DISTRIBUTION: THE MISSING OPERATIONAL BRIDGE

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Federal power needs administrative machinery and money, not only entries in legislative lists.

Technical definition: Articles 256-263 structure compliance, reciprocal delegation, legal unity and consultation; Articles 268-281 and 293 structure assignment, transfers and borrowing.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Autonomy without implementation capacity or predictable finance is merely formal.

MUST-WRITE KEYWORDS

- Articles 256-263
- Articles 268-281
- Article 293
- reciprocal delegation
- Inter-State Council
- fiscal capacity

How to use them: Frame the answer through Articles 256-263; define Articles 268-281, connect Article 293 with reciprocal delegation to explain the mechanism, and use Inter-State Council for the decisive comparison or qualification.

Articles 256-263: administration, delegation and consultation

Provision	Exact Core rule	Federal significance / trap
Article 256	State executive power must secure compliance with parliamentary laws and existing laws applicable in the State; Union directions may be given for that purpose	A compliance power, not a general Union takeover of State administration
Article 257	State executive power must not impede Union executive power; specified Union directions and cost rules apply	Coordination is text-bounded and reviewable
Article 258	With State consent, the President may entrust Union functions to the State or its officers, with conditions	Delegation does not transfer legislative ownership
Article 258A	A Governor may, with Union consent, entrust State functions to the Union or its officers	The Constitution permits delegation in both directions
Article 261	Public acts, records and judicial proceedings receive full faith and credit throughout India	Supports one legal space across federal units
Article 262	Parliament may provide adjudication of inter-State river-water disputes and may exclude court jurisdiction by law	Exclusion is not automatic from Article 262 alone
Article 263	The President may establish an Inter-State Council for inquiry, discussion and recommendations	Consultative and recommendatory unless another legal rule supplies binding force

Article 355 is a duty; Articles 356-357 provide an exceptional remedy

- [FACT] Article 355 places a duty on the Union to protect every State against external aggression and internal disturbance and to ensure constitutional government.
- [FACT] Article 356 requires the President to be satisfied that State government cannot be carried on according to the Constitution; Article 357 governs exercise of legislative powers under such a proclamation.
- [LIMIT] Article 355 is not a free-standing licence for every coercive measure, and a difficulty under Article 355 does not automatically establish the Article 356 threshold.
- [FACT] *S.R. Bommai (1994)* subjects a proclamation to judicial review and permits restoration; House majority should ordinarily be tested on the floor rather than inferred by the Governor.

Articles 268-281 and 293: fiscal capacity follows constitutional assignment

Route	Core constitutional anchor	Answer use
Levy/collection assignment	Articles 268, 269 and GST-specific 269A	Revenue may be levied, collected and assigned through different Union-State combinations
Divisible pool	Article 270	Prescribed Union taxes are distributed between Union and States
Grants	Articles 275 and 282	Constitutional grants-in-aid coexist with discretionary public-purpose grants; do not treat them as identical
GST shared rule	Articles 246A, 269A and 279A	Simultaneous competence, inter-State apportionment and Council negotiation form one design
Finance Commission	Articles 280-281	A periodic constitutional body recommends distribution and grants; its report and explanatory memorandum go before Parliament
State borrowing	Article 293	State borrowing can require Union consent where specified Union debt remains outstanding

Answer-grabbing line: Indian federalism distributes not only law-making subjects but also administrative responsibility and usable fiscal capacity; autonomy without implementation machinery or predictable finance is merely formal.

CLOSING RECALL FLOW - ADMINISTRATIVE AND FINANCIAL DISTRIBUTION: THE MISSING OPERATIONAL BRIDGE

START / CONCEPT: Administrative and financial distribution: the missing operational bridge
 |
 v
 EXACT TERMS: Articles 256-263 · Articles 268-281 · Article 293 · reciprocal delegation · Inter-State Council · fiscal capacity
 |
 v
 MECHANISM / ARGUMENT: Bounded directions and consensual delegation connect administrations, while assignment, devolution, grants and borrowing rules connect revenue to responsibility.
 |
 v
 CONSEQUENCE / CONTRAST: The two levels remain distinct but institutionally interdependent in daily governance.
 |
 v
 UPSC TRAP / ANSWER-USE: Article 262 excludes jurisdiction only through parliamentary law; Article 355 does not automatically trigger Article 356.
 |
 v
 ANSWER-GRABBING FORMULATION: Autonomy without implementation capacity or predictable finance is merely formal.

SESSION 8 - FEDERALISM AS BASIC STRUCTURE: CASE CHRONOLOGY

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Supreme Court doctrine moved from recognising India's strong Union to enforcing federalism as a constitutional limitation.

Technical definition: S.R. Bommai (1994) makes federalism Basic Structure, subjects Article 356 to review and privileges floor determination of majority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The case chronology shows that federalism permits a strong Union but, as Basic Structure, forbids destruction of State constitutional status.

MUST-WRITE KEYWORDS

- Kesavananda Bharati (1973)
- S.R. Bommai (1994)
- Kuldip Nayar (2006)
- Basic Structure

How to use them: Frame the answer through Kesavananda Bharati (1973); define S.R. Bommai (1994), connect Kuldip Nayar (2006) with Basic Structure to explain the mechanism, and close with the decisive comparison or qualification.

Federalism in constitutional adjudication



The case chain moves from strong-Union description to enforceable basic-structure protection.

Case	Deployable proposition	Qualification
<i>State of West Bengal v. Union of India</i> (1962)	India was not formed by an agreement among sovereign States; Parliament possessed the challenged acquisition competence	Strong-Union description did not erase all State autonomy
<i>Kesavananda Bharati</i> (1973)	Parliament's amending power is limited by Basic Structure	Federalism later becomes a named component
<i>State of Rajasthan v. Union of India</i> (1977)	Recognised the Union-weighted constitutional scheme while reviewing Article 356-related conflict cautiously	Predates S.R. Bommai (1994)'s stronger review framework
<i>S.R. Bommai (1994) v. Union of India</i> (1994)	Federalism is a Basic Structure feature; Article 356 proclamations are reviewable; majority ordinarily belongs on the House floor	Does not make India a compact of sovereign States
<i>Kuldip Nayar v. Union of India</i> (2006)	Rajya Sabha residence requirement was not indispensable to federalism; Indian federalism has distinctive design	Do not infer that State representation is irrelevant

S.R. Bommai (1994) answer value

1. Converts federalism from description into a constitutional limitation.
2. Restrains partisan dismissal of State governments.
3. Supports floor tests where majority is disputed.
4. Allows restoration after an unconstitutional proclamation.

5. Shows that a strong Union remains bounded by constitutional federalism.

CLOSING RECALL FLOW - FEDERALISM AS BASIC STRUCTURE: CASE CHRONOLOGY

START / CONCEPT: Federalism as Basic Structure: case chronology

|

v

EXACT TERMS: Kesavananda Bharati (1973) · S.R. Bommai (1994) · Kuldip Nayar (2006) · Basic Structure

|

v

MECHANISM / ARGUMENT: The case chain limits amendment and emergency action while allowing India's distinctive integrated design.

|

v

CONSEQUENCE / CONTRAST: Federalism becomes an enforceable boundary rather than only a descriptive label.

|

v

UPSC TRAP / ANSWER-USE: S.R. Bommai (1994) does not create State sovereignty, equal representation or a right to secede.

|

v

ANSWER-GRABBING FORMULATION: The case chronology shows that federalism permits a strong Union but, as Basic Structure, forbids destruction of State constitutional status.

SESSION 9 - HOW INDIAN FEDERALISM ACTUALLY WORKS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Cooperation, competition, bargaining, coercion and confrontation can operate simultaneously across sectors.

Technical definition: These modes describe political operation and bargaining power; they are not mutually exclusive constitutional categories.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The health of a federation is measured by how it channels conflict, not by the absence of disagreement.

MUST-WRITE KEYWORDS

- cooperative federalism
- competitive federalism
- bargaining federalism
- coercive federalism
- confrontation
- constitutional conflict

How to use them: Frame the answer through cooperative federalism; define competitive federalism, connect bargaining federalism with coercive federalism to explain the mechanism, and use confrontation for the decisive comparison or qualification.

Indian federalism operates in simultaneous modes



Cooperation, competition, bargaining, coercion and confrontation operate at the same time.

Mode	Meaning	Indian illustrations	Analytical limit
Cooperative	Joint rule-making or implementation	GST Council, disaster response, centrally supported schemes	Cooperation may reflect unequal bargaining power
Competitive	States compete on outcomes and investment	Reform rankings, investment summits, policy innovation	Can widen capacity gaps
Bargaining	Outcomes emerge through negotiation	Finance Commission representations, coalition politics, scheme design	Bargaining power varies
Coercive	Union leverage narrows effective State choice	Conditional grants, directions, investigative or gubernatorial pressure claims	Not every national standard is coercive
Confrontational	Governments litigate or resist	CBI consent disputes, Governor assent, fiscal and river-water conflict	Conflict can remain constitutional and productive

The 2020 GS-II verdict

- [ANALYSIS] Indian federalism is not moving linearly from cooperation to confrontation. The five modes coexist by sector and political alignment.
- [ANALYSIS] Granville Austin's "cooperative federalism" identifies design aspiration; Morris-Jones's "bargaining federalism" better captures negotiated operation.
- [ANALYSIS] The health test is whether institutions convert confrontation into reasons, negotiation, adjudication and electoral accountability.

CLOSING RECALL FLOW - HOW INDIAN FEDERALISM ACTUALLY WORKS

START / CONCEPT: How Indian federalism actually works

|
v

EXACT TERMS: cooperative federalism · competitive federalism · bargaining federalism · coercive federalism · confrontation · constitutional conflict

|
v

MECHANISM / ARGUMENT: Councils, transfers, parties, courts and elections repeatedly coordinate or contest Union-State choices.

|
v

CONSEQUENCE / CONTRAST: Conflict can produce negotiation and accountability, though unequal capacity can turn coordination into leverage.

|
v

UPSC TRAP / ANSWER-USE: Do not label every national standard coercive or every dispute a breakdown of federalism.

|
v

ANSWER-GRABBING FORMULATION: The health of a federation is measured by how it channels conflict, not by the absence of disagreement.

SESSION 10 - INSTITUTIONS OF SHARED RULE

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Shared-rule institutions give States channels in legislation, taxation, finance, administration and adjudication.

Technical definition: Rajya Sabha, Inter-State Council, Zonal Councils, GST Council, Finance Commission, NITI Aayog and courts perform distinct, non-interchangeable functions.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

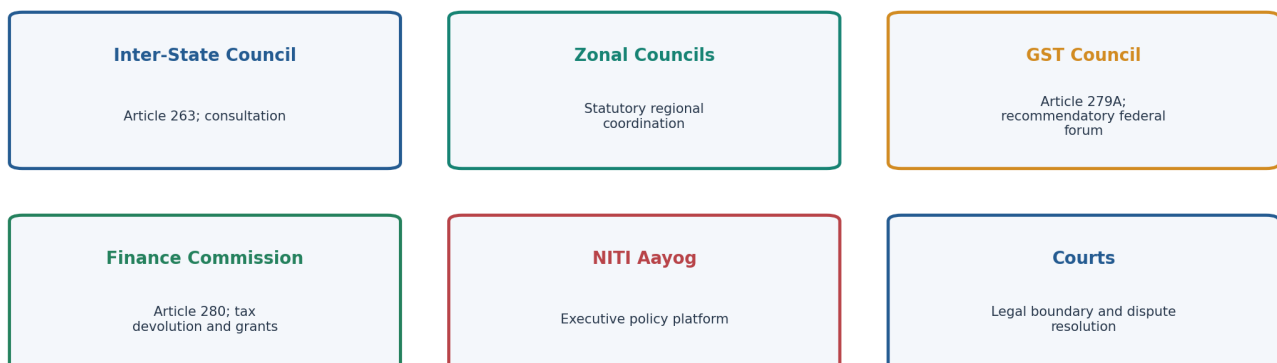
Indian federalism works through an institutional ecosystem rather than one federal council.

MUST-WRITE KEYWORDS

- Rajya Sabha
- Inter-State Council
- GST Council
- Finance Commission
- Zonal Councils
- Article 131

How to use them: Frame the answer through Rajya Sabha; define Inter-State Council, connect GST Council with Finance Commission to explain the mechanism, and use Zonal Councils for the decisive comparison or qualification.

Institutions that channel intergovernmental relations



Federal institutions provide political, fiscal, administrative and judicial channels.

Institution	Constitutional/statutory base	Federal function
Inter-State Council	Article 263; established by presidential order	Inquiry, discussion and recommendations on common interests
Zonal Councils	States Reorganisation Act, 1956	Regional coordination; North Eastern Council is separately statutory
GST Council	Article 279A	Union-State tax negotiation and harmonisation
Finance Commission	Article 280	Vertical and horizontal tax devolution and grants
NITI Aayog	Executive resolution	Policy consultation, data and programme coordination
Constitutional courts	Supreme Court: Articles 32, 131 and 136; High Courts: Article 226	Adjudicate legal boundaries, rights and specified Union-State disputes
Rajya Sabha	Articles 80, 249, 312	State representation and special federal powers

GST Council after Mohit Minerals (2022)

- [FACT] GST Council recommendations are not binding commands on Parliament or State legislatures.
- [FACT] Article 246A gives simultaneous GST legislative power within its scheme.
- [CURRENT] The official GST Council continues to describe consultation and cooperative federalism

as its operating aspiration; the 56th meeting was held in September 2025. This is a dated institutional illustration, not proof that every decision is unanimous or binding.

- [ANALYSIS] The Council works through political persuasion, structured voting and the need for harmonisation: cooperative federalism is dialogic, not hierarchical.
- [LIMIT] "Not binding" does not mean irrelevant; departure can create political, administrative and market costs.

CLOSING RECALL FLOW - INSTITUTIONS OF SHARED RULE

START / CONCEPT: Institutions of shared rule

|
v

EXACT TERMS: Rajya Sabha • Inter-State Council • GST Council • Finance Commission • Zonal Councils
• Article 131

|
v

MECHANISM / ARGUMENT: Representation, consultation, transfers and adjudication convert interdependence into repeatable decision procedures.

|
v

CONSEQUENCE / CONTRAST: Institutions can reduce unilateralism, but non-binding advice and unequal resources still require political good faith.

|
v

UPSC TRAP / ANSWER-USE: GST Council recommendations and Inter-State Council advice are not automatically binding commands.

|
v

ANSWER-GRABBING FORMULATION: Indian federalism works through an institutional ecosystem rather than one federal council.

SESSION 11 - ASYMMETRIC FEDERALISM

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Asymmetric federalism gives different units constitutionally differentiated arrangements to accommodate distinct histories and needs.

Technical definition: The Fifth and Sixth Schedules, Article 371 family and differentiated Union-Territory designs preserve common citizenship with varied institutions.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Asymmetric federalism shows that uniform citizenship need not require identical territorial governance.

MUST-WRITE KEYWORDS

- asymmetric federalism
- Fifth Schedule
- Sixth Schedule
- Article 371
- Article 239AA
- accommodation

How to use them: Frame the answer through asymmetric federalism; define Fifth Schedule, connect Sixth Schedule with Article 371 to explain the mechanism, and use Article 239AA for the decisive comparison or qualification.

Asymmetry protects unity through differentiated arrangements



Differentiated constitutional arrangements accommodate unequal histories and needs.

- [FACT] Symmetric federalism gives constituent units substantially similar constitutional powers; asymmetric federalism constitutionally differentiates them.
- [FACT] India's asymmetry appears through the Fifth and Sixth Schedules, Article 371 and related provisions, special arrangements for some Union Territories, and differentiated legislative fields.
- [ANALYSIS] Asymmetry is an integration device: it permits common citizenship while protecting distinct institutions, land relations, customary practices or administrative needs.
- [LIMIT] Asymmetry is not the same as arbitrary discrimination. Its legitimacy rests on constitutional text, purpose and equal-citizenship limits.

Fifth and Sixth Schedule distinction

Fifth Schedule	Sixth Schedule
Scheduled Areas in States other than the four Sixth Schedule States	Tribal areas in Assam, Meghalaya, Tripura and Mizoram
Governor and Tribes Advisory Council architecture	Autonomous District and Regional Councils
Protective administration and modification of law	Greater local legislative, judicial and administrative space

Jammu and Kashmir caution

- [CURRENT] The post-2019 constitutional and territorial arrangement must be described through current law, not the former Article 370 framework as if still operational.
- [LIMIT] The full legal chronology and Supreme Court decision belong to the dedicated Jammu and Kashmir topic; here it illustrates that territorial and asymmetric design can be constitutionally reconfigured and contested.

CLOSING RECALL FLOW - ASYMMETRIC FEDERALISM

START / CONCEPT: Asymmetric federalism

|

v

EXACT TERMS: asymmetric federalism · Fifth Schedule · Sixth Schedule · Article 371 · Article 239AA
· accommodation

|

v

MECHANISM / ARGUMENT: Constitutional differentiation protects tribal institutions, land, custom or administrative needs within one Union.

|

v

CONSEQUENCE / CONTRAST: Purpose-based asymmetry can support integration by reducing the cost of belonging to the common polity.

|

v

UPSC TRAP / ANSWER-USE: Do not cite former Article 370 status as current or equate asymmetry with arbitrary discrimination.

|

v

ANSWER-GRABBING FORMULATION: Asymmetric federalism shows that uniform citizenship need not require identical territorial governance.

SESSION 12 - FISCAL FEDERALISM

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Fiscal federalism aligns revenue authority and transfers with expenditure responsibilities across Union and States.

Technical definition: Articles 268-281, GST provisions and Article 293 combine assignment, devolution, grants, shared taxation and borrowing controls.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

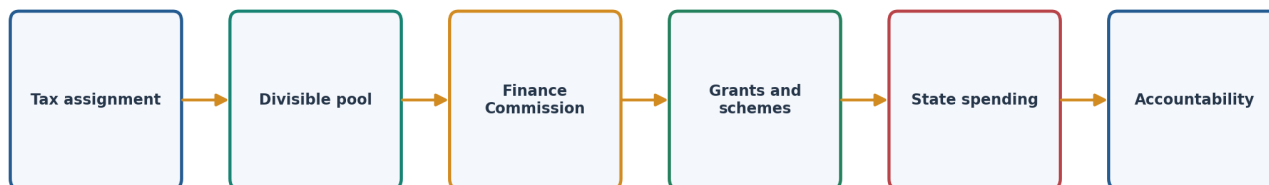
State legislative autonomy becomes meaningful only when matched by usable and predictable fiscal capacity.

MUST-WRITE KEYWORDS

- vertical imbalance
- Article 270
- Finance Commission
- 41 percent
- GST Council
- cesses and surcharges

How to use them: Frame the answer through vertical imbalance; define Article 270, connect Finance Commission with 41 percent to explain the mechanism, and use GST Council for the decisive comparison or qualification.

Fiscal-federal chain



Fiscal federalism links tax authority, devolution, grants, expenditure and accountability.

Structural problem: vertical fiscal imbalance

- [FACT] The Union possesses broad and productive tax bases, while States carry major expenditure responsibilities in health, police, agriculture, local infrastructure and welfare implementation.
- [ANALYSIS] Transfers are therefore not charity; they are a structural feature of the constitutional division of revenue and responsibility.

Instruments

Instrument	Federal role	Risk
Tax assignment	Gives each level own-source revenue	Unequal bases
Tax devolution	Shares divisible-pool taxes	Formula conflict
Finance Commission grants	Addresses needs and externalities	Conditionality and predictability
Centrally sponsored schemes	Supports national priorities	One-size design and State fiscal burden
GST	Common market with pooled tax sovereignty	Rate autonomy and compensation disputes
Cesses and surcharges	Union revenue outside divisible pool under current scheme	States argue effective share is compressed

16th Finance Commission current control

- [CURRENT] The Sixteenth Finance Commission submitted its report to the President on **17 November 2025 **for the award period 2026-27 to 2030-31****; the official report is public.
- [CURRENT] The Commission's 2026-31 award retains States' vertical share at **41% of the divisible pool**.
- [CURRENT] Its horizontal formula combines equalisation and performance considerations. Quote exact criteria or weights only from the official report, not from memory.
- [LIMIT] The detailed weights and grant architecture belong to Polity 29; in this chapter use the award to show that fiscal federalism balances **equalisation, performance and political legitimacy**.

CLOSING RECALL FLOW - FISCAL FEDERALISM

START / CONCEPT: Fiscal federalism

|

v

EXACT TERMS: vertical imbalance • Article 270 • Finance Commission • 41 percent • GST Council • cesses and surcharges

|

v

MECHANISM / ARGUMENT: Own revenues, divisible-pool transfers, grants and GST bargaining finance services while equalisation addresses unequal State capacity.

|

v

CONSEQUENCE / CONTRAST: The system supports national redistribution but may create dependence through cesses, conditions and borrowing leverage.

|

v

UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: quote exact horizontal weights only from the official Sixteenth Finance Commission report.

|

v

ANSWER-GRABBING FORMULATION: State legislative autonomy becomes meaningful only when matched by usable and predictable fiscal capacity.

SESSION 13 - REPRESENTATIONAL FEDERALISM AND DELIMITATION

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Representational federalism and delimitation determine each State's weight in institutions that make Union law and government.

Technical definition: Articles 80-82, the seat-freeze amendments and Article 334A connect population equality, federal fairness and women's representation.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

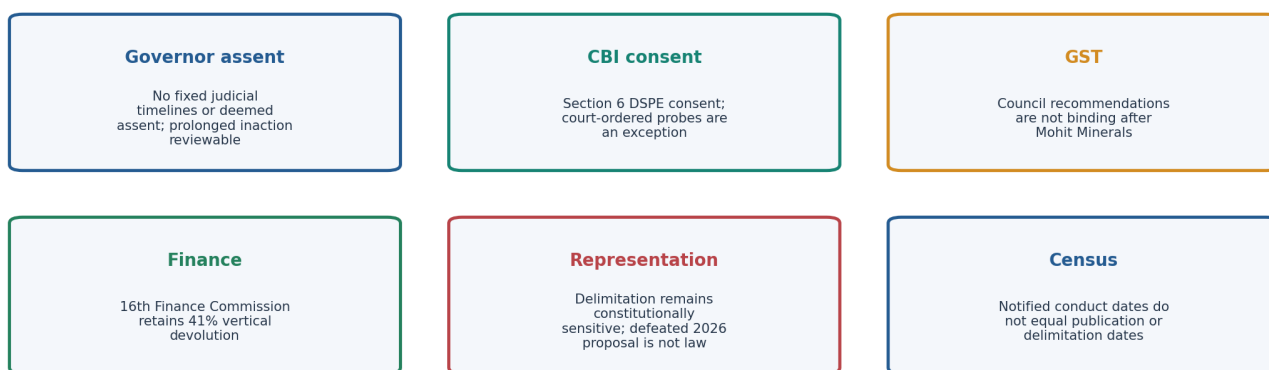
Delimitation is a conflict between equal vote value and protection against political punishment for demographic success.

MUST-WRITE KEYWORDS

- Article 80
- Article 81
- Article 82
- delimitation
- seat freeze
- Article 334A

How to use them: Frame the answer through Article 80; define Article 81, connect Article 82 with delimitation to explain the mechanism, and use seat freeze for the decisive comparison or qualification.

Live federal-friction map - controlled to 16 August 2026



Current federal friction spans assent, investigation, GST, finance, representation and census-linked uncertainty.

Rajya Sabha and demographic representation

- [FACT] Rajya Sabha represents States but not equally; Fourth Schedule allocation broadly reflects population.
- [FACT] Lok Sabha seat allocation and constituency readjustment are governed by Articles 81 and 82, subject to constitutional freeze provisions.
- [ANALYSIS] Population control creates a federal fairness dilemma: equal vote value points toward updated population, while rewarding demographic performance points toward protecting relative representation of lower-growth States.

2026 proposal: use only as a defeated proposal

- [CURRENT] The Constitution (131st Amendment) Bill, 2026 and connected delimitation Bills were introduced on **16 April 2026** and the constitutional Bill was defeated on **17 April 2026**, receiving **298 votes in favour and 230 against**, short of the special-majority requirement.
- [LIMIT] The proposed Lok Sabha ceiling of 850 belongs only to the defeated Bill. It is not the current constitutional ceiling and creates no precedent.
- [CURRENT] Census 2027 has notified enumeration phases, but conduct/reference dates are not publication dates.
- [LIMIT] No delimitation date, State-wise seat projection or election date for operational women's reservation should be asserted.

Safe analytical frame

1. **Democratic equality:** constituencies should not become indefinitely unequal.
2. **Federal fairness:** States that achieved population stabilisation should not perceive political punishment.
3. **House capacity:** a larger House can reduce constituency size but needs physical and procedural redesign.
4. **Women's representation:** Article 334A creates a census-delimitation sequence; commencement is not the same as operational reservation.
5. **Process legitimacy:** broad consultation matters because representation changes the Union's political balance.

CLOSING RECALL FLOW - REPRESENTATIONAL FEDERALISM AND DELIMITATION

START / CONCEPT: Representational federalism and delimitation

|

v

EXACT TERMS: Article 80 · Article 81 · Article 82 · delimitation · seat freeze · Article 334A

|

v

MECHANISM / ARGUMENT: A published census can trigger readjustment processes, while constitutional amendment and delimitation law define the operative bargain.

|

v

CONSEQUENCE / CONTRAST: Representation may become fairer by population yet redistribute federal influence among States.

|

v

UPSC TRAP / ANSWER-USE: The defeated 2026 proposal is not law; conduct dates are not publication or delimitation dates.

|

v

ANSWER-GRABBING FORMULATION: Delimitation is a conflict between equal vote value and protection against political punishment for demographic success.

SESSION 14 - CURRENT FEDERAL-FRICTION CONTROLS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Current disputes over assent, CBI consent, taxation and representation must be stated through their latest legal status.

Technical definition: The 2025 assent opinion rejects fixed timelines and deemed assent while allowing limited review of prolonged inaction; CBI consent remains subject to constitutional-court power.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Current federal-friction controls require enacted law, judicial doctrine, defeated proposals and pending processes to be kept separate.

MUST-WRITE KEYWORDS

- Governor assent
- 20 November 2025
- CBI consent
- Article 131
- Sixteenth Finance Commission
- status discipline

How to use them: Frame the answer through Governor assent; define 20 November 2025, connect CBI consent with Article 131 to explain the mechanism, and use Sixteenth Finance Commission for the decisive comparison or qualification.

Governor assent after the 20 November 2025 advisory opinion

- [FACT] Courts cannot prescribe fixed timelines for the Governor or President under Articles 200-201.
- [FACT] Deemed assent is constitutionally impermissible.
- [FACT] Prolonged unexplained inaction can attract limited judicial intervention directing the authority to act, without dictating the choice.
- [ANALYSIS] The current doctrine protects constitutional discretion while rejecting a pocket veto by silence.
- [LIMIT] Do not use the superseded April 2025 timeline/deemed-assent position as current law.

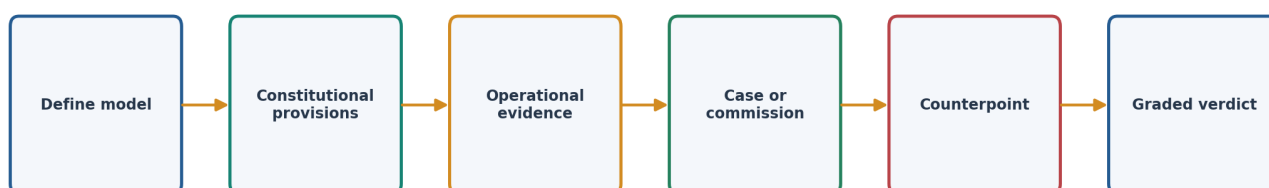
CBI and State consent

- [FACT] Section 6 of the Delhi Special Police Establishment Act, 1946 requires State consent for DSPE/CBI exercise of powers in a State.

- [FACT] Withdrawal of general consent ordinarily means fresh cases require case-specific consent.
- [FACT] High Courts and the Supreme Court can order a CBI investigation without State consent under constitutional jurisdiction.
- [CURRENT] *State of West Bengal v. Union of India* (2024) rejected the Union's preliminary maintainability objection to West Bengal's Article 131 suit; it did **not** finally decide the merits of every post-withdrawal investigation.
- [ANALYSIS] The controversy demonstrates confrontational federalism through courts rather than extra-constitutional resistance.

Answer-writing framework

A high-scoring federalism answer spine



A strong answer moves from definition to provisions, evidence, authority, counterpoint and a graded verdict.

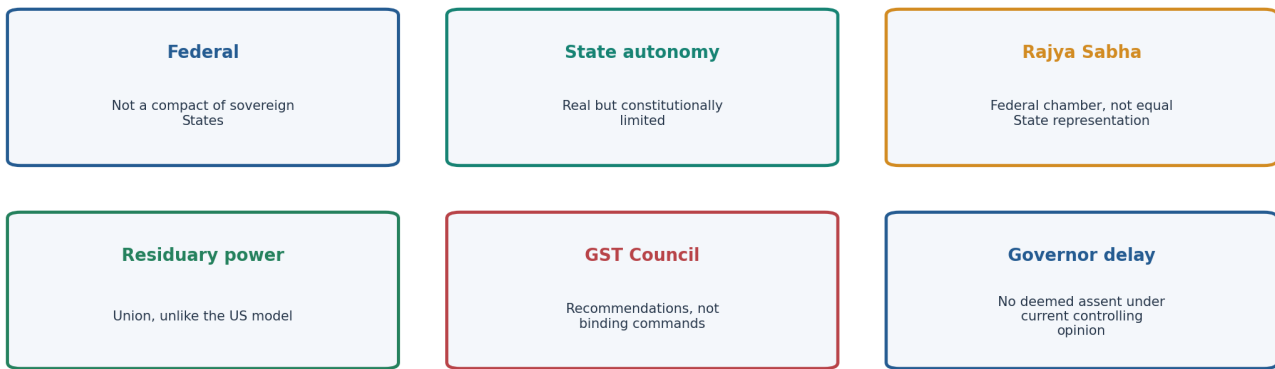
Model -> constitutional allocation -> operating mode -> case/institution -> tension -> reform -> graded verdict

Best conclusion: India is neither administratively unitary nor a compact federation. It is a constitutionally federal, Union-weighted and politically bargaining system whose legitimacy depends on converting superior Union capacity into consultation rather than domination.

Reform agenda: strengthen federal capacity without disabling the Union

Problem	Reform direction	Constitutional purpose
Irregular consultation	Regular Inter-State Council agenda and follow-up	Shared rule
Governor conflict	Transparent reasons, constitutional conventions and prompt action	Neutral headship
Fiscal mistrust	Predictable transfers and transparent scheme consultation	State planning autonomy
CBI conflict	Clear statutory accountability and consent protocols	Police autonomy plus national investigation
GST friction	Better dispute resolution and publication of reasoned decisions	Cooperative tax governance
Article 356 risk	Continue S.R. Bommai (1994) discipline and floor-test priority	Elected State government
Capacity inequality	Equalisation plus outcome-linked support	Meaningful, not merely formal autonomy
Delimitation conflict	Broad federal bargain before redistribution	Democratic equality plus federal legitimacy

Prelims trap grid



The trap grid distinguishes constitutional rules from common overstatements.

CLOSING RECALL FLOW - CURRENT FEDERAL-FRICTION CONTROLS

START / CONCEPT: Current federal-friction controls

|

v

EXACT TERMS: Governor assent • 20 November 2025 • CBI consent • Article 131 • Sixteenth Finance Commission • status discipline

|

v

MECHANISM / ARGUMENT: Courts preserve constitutional choice while policing paralysis; statutory consent protects State policing while judicial power protects rights.

|

v

CONSEQUENCE / CONTRAST: Federal friction is channelled into reasoned action and adjudication rather than an unreviewable veto.

|

v

UPSC TRAP / ANSWER-USE: Do not treat maintainability as a final merits ruling or forecast delimitation and reservation dates.

|

v

ANSWER-GRABBING FORMULATION: Current federal-friction controls require enacted law, judicial doctrine, defeated proposals and pending processes to be kept separate.

POLITY HOSTILE SEMANTIC-REVIEW CORE CONTROL

- **Must remember:** Test federalism through dual government, constitutional distribution, supremacy, rigidity, independent courts and bicameral representation, then map the Union tilt through Articles 3, 248-253, 256-257, 312, 352-356 and integrated constitutional institutions.
- **Close distinction:** Article 1's 'Union of States' rejects a secession compact but does not make India unitary. Federalism is basic structure; the Union may be stronger and States territorially alterable while each level retains constitutionally assigned fields.
- **Legal/source limit:** Current federal claims must distinguish enacted law, advisory judgments and failed proposals: the 2025 Article 143 opinion controls assent, the 16th Finance Commission retains 41 percent vertical devolution, and the defeated 131st Amendment Bill, 2026 never amended the Constitution.

Semantic-completeness ownership and PYQ control

- **Federal test:** India combines dual polity, a written and supreme Constitution, distributed competence, partial rigidity, independent judicial review and bicameral representation. Article 1's 'Union of States' denies a compact-based right to secede; it does not erase the federal distribution.
- **Distribution:** Articles 245-246 and the Seventh Schedule allocate fields; Article 248 with Union List Entry 97 gives Parliament the residue. Article 246A is a special concurrent GST power, not a new Concurrent-List entry.
- **Union tilt:** Articles 3, 249, 250, 252, 253, 256-257, 312 and 352-356, the

Governor's Union appointment, single citizenship, integrated services and emergency conversion explain why India is a holding-together federation with a strong Centre.

- **Basic structure:** Kesavananda Bharati (1973) supplies the limitation method and S.R. Bommai (1994) expressly treats federalism as a basic feature. Union strength cannot be

converted into unlimited central supremacy over constitutionally assigned State fields.

- **Working modes:** cooperative, competitive and coercive federalism are analytical descriptions. GST Council, Finance Commission, Inter-State Council and Zonal Councils are different in source, membership and legal effect.

- **Asymmetry:** Articles 371-371J, Fifth/Sixth Schedule arrangements and Union territories show differentiated integration. Article 370 is inoperative and Jammu and Kashmir is not presently a special-status State.

- **Owned comparison:** the complete federal-unitary comparison belongs here: levels, source of powers, constitutional supremacy, amendment, judiciary, representation and territorial security. Topic 13 owns the detailed operating relations between the two levels.

- **Current assent law:** the 20 November 2025 Article 143 opinion rejects fixed judicial timelines and deemed assent, recognises Article 200 discretion, and permits limited mandamus only for prolonged, unexplained, indefinite inaction.

- **Fiscal and representational control:** the Sixteenth Finance Commission report for 2026-31 retains forty-one per cent vertical devolution. The 131st Amendment Bill, 2026 was defeated and its proposed 850-seat ceiling never became law.

- **Four-ledger/PYQ control:** the federal/unitary taxonomy, exact centralising devices, cases, commissions, current fiscal/assent/representation status and all routed demands were checked; direct and cross-topic ownership remain labelled.

BASIC MCQS / REMEDIATION

Original hard MCQ set - strict A -> B -> C -> D rotation

OM1. Federal essence

Which proposition best defines a federation?

A. The Constitution protects authority of general and regional governments in assigned spheres. B. A treaty league alone is federal. C. Regional governments receive revocable powers from the Union. D. Courts must always be dual.

Answer: A.

Constitutionally protected distribution, not mere administrative devolution, is the controlling test.

OM2. Holding together

India is best described as:

A. a legally unitary State with no State autonomy. B. a holding-together federation with a strong Union. C. a coming-together compact with a secession right. D. a confederation of sovereign States.

Answer: B.

India constitutionally distributes power to govern an existing diverse polity; States did not create the Union by compact.

OM3. Article 1

The phrase 'Union of States' most safely indicates that:

A. State governments are Union departments. B. the Seventh Schedule is optional. C. the Union is not the result of an agreement among sovereign States with a secession right. D. State boundaries can never change.

Answer: C.

The expression rejects compact/secession theory while coexisting with real constitutional federalism.

OM4. Federal feature

Which combination most directly protects federal allocation?

A. Governor appointment and All-India Services B. Single citizenship and emergency provisions C. Parliamentary government and collective responsibility D. Written supreme Constitution, division of powers and independent judiciary

Answer: D.

These features make the allocation authoritative and judicially enforceable.

OM5. Rajya Sabha

Which statement is correct?

A. Rajya Sabha is a federal chamber, but States do not receive equal representation. B. Union Territories have no possible representation. C. Rajya Sabha can amend the Seventh Schedule alone. D. Each State has two members.

Answer: A.

Fourth Schedule allocation broadly follows population; India does not copy US Senate equality.

OM6. Residuary power

Residuary legislative power in India belongs to:

A. the Inter-State Council. B. Parliament under Article 248 and Union Entry 97. C. State legislatures collectively. D. the Supreme Court.

Answer: B.

This is a centralising feature and differs from several classic federations.

OM7. List counts

Which is the standard current examination statement?

A. Union 98, State 59, Concurrent 52 B. Union 100, State 60, Concurrent 50 C. Union 100, State 61, Concurrent 52 D. Union 97, State 66, Concurrent 47

Answer: C.

Use 100/61/52; omitted and inserted numbering explains alternative literal counts.

OM8. Article 246

Which statement is correct?

A. State List always overrides Union List. B. Article 246 contains no hierarchy. C. Concurrent power belongs only to Parliament. D. Union List power operates notwithstanding Concurrent and State clauses.

Answer: D.

Article 246(1) uses a notwithstanding clause; State power is expressly subject to clauses (1) and (2).

OM9. Pith and substance

The doctrine primarily asks:

A. What is the true nature and character of the law? B. Is the law popular? C. Did Parliament consult every State? D. Was presidential assent politically wise?

Answer: A.

A law within competence survives incidental encroachment into another field.

OM10. Article 254

A State law repugnant to an existing parliamentary law on a Concurrent subject may operate in that State if:

A. the Inter-State Council recommends it. B. it is reserved for and receives Presidential assent. C. the Governor signs without reservation. D. Rajya Sabha alone approves it.

Answer: B.

Parliament can subsequently override the assented State law.

OM11. Article 249

Parliament may legislate on a State subject in national interest after:

A. every State consents. B. a simple Lok Sabha resolution. C. Rajya Sabha passes the prescribed two-thirds present-and-voting resolution. D. the Chief Justice certifies necessity.

Answer: C.

The States' chamber supplies the special federal trigger.

OM12. Article 252

Which statement is correct about a law under Article 252?

A. It requires an Article 352 emergency. B. It automatically applies to every State. C. A requesting State may repeal it unilaterally. D. Parliament enacts on State request and Parliament alone can amend or repeal it.

Answer: D.

Other States may later adopt the law.

OM13. Article 253

Article 253 permits Parliament to:

A. implement treaties even where legislation touches a State subject. B. change State boundaries without Article 3. C. suspend judicial review. D. abolish Rajya Sabha.

Answer: A.

Treaty implementation is an express route into the State field, subject to the Constitution.

OM14. S.R. Bommai (1994)

The strongest federal proposition from S.R. Bommai (1994) is:

A. Article 356 is non-justiciable. B. federalism is Basic Structure and Article 356 material is reviewable. C. States have a right to secede. D. Governors decide majority finally in private.

Answer: B.

S.R. Bommai (1994) constitutionalises federalism and favours floor determination of disputed majority.

OM15. Kuldip Nayar

Kuldip Nayar is safely used to show that:

A. State representation is unconstitutional. B. all States require equal seats. C. a State residence requirement for Rajya Sabha candidature is not indispensable to Indian federalism. D. Rajya Sabha is not a federal chamber.

Answer: C.

The judgment recognises India's distinctive, not textbook-identical, federal design.

OM16. Cooperative federalism

Which statement is most precise?

A. It requires unanimous agreement. B. It eliminates State autonomy. C. It excludes competition. D. It denotes joint action while preserving constitutionally distinct governments.

Answer: D.

Cooperation addresses interdependence; it does not merge the two levels.

OM17. Competitive federalism

A central benefit of competitive federalism is:

A. policy innovation and diffusion among States. B. automatic equalisation of all capacities. C. abolition of transfers. D. removal of constitutional limits.

Answer: A.

Competition can improve outcomes but may widen capacity gaps.

OM18. Morris-Jones

The label 'bargaining federalism' is associated with:

A. B.R. Ambedkar. B. Morris-Jones. C. K.C. Wheare. D. A.V. Dicey.

Answer: B.

It captures negotiated Union-State political operation.

OM19. GST Council

After Mohit Minerals (2022), GST Council recommendations are:

A. binding constitutional commands. B. irrelevant to GST law. C. recommendatory, within a system requiring collaboration. D. binding only on States.

Answer: C.

The Court preserved simultaneous legislative authority and dialogic cooperation.

OM20. Inter-State Council

Which pairing is correct?

A. Article 280 - Inter-State Council B. Article 312 - Finance Commission C. Article 279A - Zonal Councils D. Article 263 - Inter-State Council

Answer: D.

Zonal Councils are statutory; the Finance Commission is Article 280.

OM21. Asymmetry

Asymmetric federalism means:

A. constitutionally differentiated arrangements for some units or regions. B. temporary President's Rule. C. unequal citizenship by default. D. no judicial review.

Answer: A.

India uses asymmetry for accommodation through Schedules, Article 371 provisions and differentiated UT designs.

OM22. Sixth Schedule

The Sixth Schedule principally applies to tribal areas in:

A. all north-eastern States. B. Assam, Meghalaya, Tripura and Mizoram. C. every Fifth Schedule State. D. only Assam.

Answer: B.

It creates autonomous council architecture in the four named States.

OM23. Vertical imbalance

Vertical fiscal imbalance refers to:

A. equal revenue and spending at both levels. B. only horizontal inequality among States. C. mismatch between revenue capacity and expenditure responsibilities across levels. D. a conflict within one State budget.

Answer: C.

States bear substantial spending duties while the Union controls broad tax bases.

OM24. 16th Finance Commission

Which current statement is used in this package?

A. States receive 50% of all Union revenue. B. The Finance Commission was abolished. C. Cesses are automatically divisible. D. The 2026-31 vertical share remains 41% of the divisible pool.

Answer: D.

Divisible pool is narrower than gross Union tax revenue because cesses and surcharges are excluded.

OM25. Governor assent

Under the controlling 20 November 2025 opinion:

A. no fixed judicial timelines or deemed assent exist, but prolonged inaction can invite a direction to act. B. every Bill is deemed assented after three months. C. courts choose assent or reservation. D. the Governor may keep a Bill forever without review.

Answer: A.

Judicial intervention is limited: require action, not dictate the constitutional option.

OM26. CBI consent

Which is correct?

A. Police is in the Union List. B. Section 6 DSPE consent is ordinarily required, but constitutional courts can order CBI investigation. C. Withdrawal automatically voids every earlier proceeding. D. State consent can defeat a Supreme Court-ordered probe.

Answer: B.

Consent protects federal police autonomy but is not absolute against constitutional judicial power.

OM27. Delimitation proposal

The 850-seat figure discussed in 2026 should be described as:

A. the current Article 81 ceiling. B. an Election Commission notification. C. a proposal in the defeated 131st Amendment Bill, not law. D. a Supreme Court direction.

Answer: C.

Proposal text must never be converted into current constitutional fact.

OM28. Census control

Which statement is safest as of the control date?

A. Enumeration dates are final publication dates. B. Delimitation must occur in 2027. C. Women's reservation is already operational. D. Notified census conduct dates do not establish publication, delimitation or election dates.

Answer: D.

The constitutional triggers depend on later steps; avoid invented timelines.

Remedial MCQ loop - strict A -> B -> C -> D rotation

RM1. Federal versus unitary

What makes State power federal rather than devolved?

A. Its constitutional protection. B. The size of the State. C. A central grant. D. A Governor's speech.

Answer: A.

Constitutional origin and protection distinguish autonomy from revocable delegation.

RM2. Residuary power

Who holds residuary legislative power?

A. President personally B. Parliament C. Rajya Sabha alone D. States

Answer: B.

Article 248 and Union Entry 97 place it with Parliament.

RM3. State List entry

Which route begins with resolutions by two or more State legislatures?

A. Article 250 B. Article 249 C. Article 252 D. Article 253

Answer: C.

Article 252 is consensual State initiation followed by parliamentary law.

RM4. Repugnancy

Article 254 principally concerns conflict on:

A. State List B. residuary subjects C. Union List D. Concurrent List

Answer: D.

It is not a general conflict clause for all Union-State disputes.

RM5. S.R. Bommai (1994)

Which is correct?

A. Federalism is Basic Structure. B. Article 356 is immune from review. C. Governors decide majority conclusively. D. States can secede.

Answer: A.

S.R. Bommai (1994) supplies the core constitutional protection.

RM6. GST Council

Its recommendations are:

A. binding on States only B. recommendatory C. constitutional amendments D. judicial orders

Answer: B.

Mohit Minerals (2022) confirms recommendatory status.

RM7. Governor assent

Which current proposition is correct?

A. No review of inaction is possible B. Deemed assent after one month C. No deemed assent, but prolonged inaction may be reviewed D. Courts prescribe one universal deadline

Answer: C.

Use the November 2025 controlling opinion.

RM8. 2026 delimitation package

Its proposed numbers are:

A. approved by the Supreme Court B. binding after introduction C. already in Article 81 D. defeated proposal details, not current law

Answer: D.

Always preserve the proposal/not-law label.

PYQS AND ANSWER PRACTICE

Routed PYQs with model solutions

PYQ 1 - UPSC GS-II 2020, Q3 - direct

Question: How far do you think cooperation, competition and confrontation have shaped the nature of federation in India? **10 marks | 150 words**

Model solution

Indian federalism is constitutionally divided but politically dynamic; cooperation, competition and confrontation operate simultaneously.

Cooperation appears in the GST Council, Finance Commission, disaster response and shared schemes: the Union contributes scale while States supply implementation and local knowledge. **Competition** arises through investment, welfare innovation and outcome rankings, though unequal capacity can widen gaps. **Confrontation** occurs over Governor assent, CBI consent, devolution, cesses and river waters.

Conflict need not destroy federalism when councils, Parliament, courts and elections channel it. *S.R. Bommai (1994)* makes federalism Basic Structure, while *Mohit Minerals (2022)* preserves legislative autonomy within GST cooperation. Granville Austin states the cooperative aspiration; Morris-Jones better captures bargaining practice.

Thus, cooperation remains the institutional base, competition drives innovation and confrontation tests whether bargaining remains constitutional.

Why this earns marks

It answers the extent demand, gives named examples of all three modes and closes with a hierarchy rather than treating them as chronological stages.

How to improve this answer

Use a three-branch diagram and one example per branch; do not spend scarce 150-word space defining general federal features.

Demand decoding: The directive **answer** requires a direct position on "How far do you think cooperation, competition and confrontation have shaped the nature of...", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "How far do you think cooperation, competition and confrontation have shaped the nature of federation in India?".

Analytical body:

- 1. Claim and named evidence:** Indian federalism is constitutionally divided but politically dynamic; cooperation, competition **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 2. Claim and named evidence:** Cooperation appears in the GST Council, Finance Commission, disaster response and shared **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 3. Claim and named evidence:** schemes: the Union contributes scale while States supply implementation and local knowledge. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 4. Claim and named evidence:** Competition arises through investment, welfare innovation and outcome rankings, though unequal **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 5. Claim and named evidence:** capacity can widen gaps. Confrontation occurs over Governor assent, CBI consent, devolution, **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation,

regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "How far do you think cooperation, competition and confrontation have shaped the nature of federation in India?".

Executable exam-length answer / compression plan: For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

PYQ 2 - UPSC GS-II 2021, Q11 - cross-owned

Question: The jurisdiction of the Central Bureau of Investigation regarding lodging an FIR and conducting a probe within a particular State is being questioned by various States. However, the power of States to withhold consent to the CBI is not absolute. Explain with special reference to the federal character of India. **15 marks | 250 words**

Model solution

Police and public order are State subjects, while the CBI derives investigative authority from the Delhi Special Police Establishment Act, 1946. Section 6 therefore requires State consent before DSPE personnel exercise powers within a State.

States commonly grant **general consent**. Its withdrawal means the CBI ordinarily needs case-specific consent for fresh cases. This protects territorial police autonomy and prevents a central agency from becoming an unrestricted parallel State police.

The power is not absolute for three reasons. First, the Supreme Court under Article 32 and High Courts under Article 226 may order a CBI probe without State consent to protect fundamental rights and fair investigation. Second, withdrawal does not automatically invalidate every investigation validly begun earlier. Third, the legal effect can depend on the territorial acts, accused, offence and terms of existing consent.

In *State of West Bengal v. Union of India* (2024), the Supreme Court held West Bengal's Article 131 suit maintainable against the Union's preliminary objection. The merits remained for adjudication; the ruling should not be overstated as a final ban on all CBI action.

Federalism here requires balance. State consent protects police autonomy; constitutional-court power protects justice where State investigation fails; national offences may require coordination. A clear CBI statute, transparent consent protocols and judicially supervised exceptions would reduce political confrontation.

Thus, consent is a federal safeguard, not an immunity from constitutional judicial power.

Why this earns marks

It states Section 6, explains general and case-specific consent, identifies the constitutional- court exception and qualifies the 2024 Article 131 order.

How to improve this answer

Separate rule, exceptions and federal balance; avoid implying that maintainability finally decided the legality of every investigation.

Demand decoding: The directive **answer** requires a direct position on "The jurisdiction of the Central Bureau of Investigation regarding lodging an FIR and...", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "The jurisdiction of the Central Bureau of Investigation regarding lodging an FIR and conducting a probe within a particular State is being questioned...".

Analytical body:

1. **Claim and named evidence:** Thus, consent is a federal safeguard, not an immunity from constitutional judicial power. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** It states Section 6, explains general and case-specific consent, identifies the constitutional **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** court exception and qualifies the 2024 Article 131 order. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** Separate rule , exceptions and federal balance ; avoid implying that maintainability finally **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "The jurisdiction of the Central Bureau of Investigation regarding lodging an FIR and conducting a probe within a particular State is being questioned..."

Executable exam-length answer / compression plan: For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

PYQ 3 - UPSC GS-II 2022, Q13 - cross-owned

Question: While the national political parties in India favour centralisation, the regional parties are in favour of State autonomy. Comment. **15 marks | 250 words**

Model solution

The proposition captures an important tendency but is too absolute. Federal preferences often follow institutional position and electoral incentives more than permanent ideology.

National parties controlling the Union may favour centralisation because uniform policy, national security, macroeconomic management and common markets strengthen their governing programme. Constitutional tools include residuary power, centrally sponsored schemes, Union directions, All-India Services and Parliament's exceptional access to State subjects.

Regional parties derive legitimacy from State-specific identities and interests. They commonly demand larger tax devolution, fewer scheme conditions, protection from partisan Governor action, stronger Inter-State Council consultation and restraint in deploying central agencies. Coalition governments from 1989 onward often increased their bargaining power at the Union.

However, counterevidence qualifies the claim. National parties seek State autonomy when they govern a State but oppose the Union. Regional parties may centralise authority within their own States. National-party-led coalitions have accommodated regional demands, while regional parties participating in Union government may support national uniformity. GST also shows parties accepting pooled sovereignty for a common market.

The Constitution itself combines both impulses: State List autonomy and federal amendment safeguards coexist with a strong Union and emergency powers. *S.R. Bommai (1994)* prevents the political majority at the Centre from erasing the federal basic structure.

Therefore, party type influences federal preference, but control of office, coalition arithmetic and issue-specific interests explain behaviour more reliably than the national/regional label alone.

Why this earns marks

It comments rather than agrees mechanically, supplies constitutional tools and political counterevidence, and gives a qualified causal verdict.

How to improve this answer

Organise around incentive -> evidence -> reversal; use one coalition-era example if confidently recalled, rather than listing parties.

Demand decoding: The directive **comment** requires a direct position on "While the national political parties in India favour centralisation, the regional parties are...", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "While the national political parties in India favour centralisation, the regional parties are in favour of State autonomy. Comment.".

Analytical body:

1. **Claim and named evidence:** The proposition captures an important tendency but is too absolute. Federal preferences often follow institutional position and electoral incentives more than permanent ideology. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** Therefore, party type influences federal preference, but control of office, coalition arithmetic and issue-specific interests explain behaviour more reliably than the national/regional label alone. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** It comments rather than agrees mechanically, supplies constitutional tools and political **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** counterevidence, and gives a qualified causal verdict. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** Organise around incentive -> evidence -> reversal ; use one coalition-era example if confidently **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "While the national political parties in India favour centralisation, the regional parties are in favour of State autonomy. Comment.".

Executable exam-length answer / compression plan: For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

PYQ 4 - UPSC Prelims 2021, Q86 - direct

Question: Which one of the following in Indian polity is an essential feature that indicates that it is federal in character?

- A. The independence of judiciary is safeguarded B. The Union Legislature has elected representatives from constituent units C. The Union Cabinet can have elected representatives from regional parties D. Fundamental Rights are enforceable by Courts of Law

Answer: A. INFERRED ANSWER - NOT OFFICIALLY VERIFIED.

An independent judiciary is essential to interpret the Constitution and adjudicate competence disputes between two levels. The other options can exist in non-federal systems or do not create constitutional autonomy.

Demand decoding: Treat "Which one of the following in Indian polity is an essential feature that indicates that it is..." as a definition, category, constitutional boundary, institution, mechanism and source-date-status problem. Test each statement.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "Which one of the following in Indian polity is an essential feature that indicates that it is federal in character? A. The independence of judiciary...".

Analytical body:

- Claim and named evidence:** A. The independence of judiciary is safeguarded **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- Claim and named evidence:** B. The Union Legislature has elected representatives from constituent units **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- Claim and named evidence:** C. The Union Cabinet can have elected representatives from regional parties **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- Claim and named evidence:** D. Fundamental Rights are enforceable by Courts of Law **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- Claim and named evidence:** Answer: A. INFERRED ANSWER - NOT OFFICIALLY VERIFIED. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "Which one of the following in Indian polity is an essential feature that indicates that it is federal in character? A. The independence of judiciary...".

Executable exam-length answer / compression plan: Fix the comparison axis; separate social category from legal status, right from institution and scheme from outcome; test the closest homogenisation, causation or stale-data distractor.

Why this earns marks: It prevents a familiar label or aggregate statistic from replacing the exact concept, institutional mandate, mechanism or evidence status.

How to improve this answer: For "Which one of the following in Indian polity is an essential feature that indicates that it is...", state why the nearest distractor fails on definition, group variation, causation, constitutional boundary, date

or status.

PYQ 5 - UPSC Prelims 2023, Q32 - direct

Question: Consider the following statements:

1. In India, prisons are managed by State Governments with their own rules and regulations for day-to-day administration.
2. The Prisons Act, 1894 kept the subject of prisons under the control of Provincial Governments.

Which one of the following is correct in respect of the above statements?

A. Both Statement-I and Statement-II are correct and Statement-II is the correct explanation for Statement-I B. Both Statement-I and Statement-II are correct, but Statement-II is not the correct explanation for Statement-I C. Statement-I is correct, but Statement-II is incorrect D. Statement-I is incorrect, but Statement-II is correct

Answer: B. INFERRED ANSWER - NOT OFFICIALLY VERIFIED.

Prisons are a State List subject under Entry 4, explaining current State management. The colonial Act also placed administration with provincial governments, but it is not the constitutional reason for the present federal allocation.

Demand decoding: Treat "Consider the following statements: 1. In India, prisons are managed by State Governments with..." as a definition, category, constitutional boundary, institution, mechanism and source-date-status problem. Test each statement.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "Consider the following statements: 1. In India, prisons are managed by State Governments with their own rules and regulations for day-to-day...".

Analytical body:

1. **Claim and named evidence:** In India, prisons are managed by State Governments with their own rules and regulations for day-to-day administration. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** The Prisons Act, 1894 kept the subject of prisons under the control of Provincial Governments. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** Which one of the following is correct in respect of the above statements? **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** A. Both Statement-I and Statement-II are correct and Statement-II is the correct explanation for Statement-I **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** B. Both Statement-I and Statement-II are correct, but Statement-II is not the correct explanation for Statement-I **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "Consider the following statements: 1. In India, prisons are managed by State Governments with their own rules and regulations for day-to-day...".

Executable exam-length answer / compression plan: Fix the comparison axis; separate social category from legal status, right from institution and scheme from outcome; test the closest homogenisation, causation or stale-data distractor.

Why this earns marks: It prevents a familiar label or aggregate statistic from replacing the exact concept, institutional mandate, mechanism or evidence status.

How to improve this answer: For "Consider the following statements: 1. In India, prisons are managed by State Governments with...", state why the nearest distractor fails on definition, group variation, causation, constitutional boundary, date or status.

PYQ 6 - UPSC GS-II 2020, Q11 - supporting/cross-owned

Question: The Indian Constitution exhibits centralising tendencies to maintain unity and integrity of the nation. Elucidate in the perspective of the Epidemic Diseases Act, 1897, the Disaster Management Act, 2005 and the recently passed Farm Acts. **15 marks | 250 words**

Demand decoding: Explain the constitutional centralising design, apply it to all three named laws, acknowledge the federal objection and give a graded verdict.

Model solution

India's holding-together federation equips the Union to coordinate threats crossing State boundaries, but that capacity must remain tied to constitutional competence and consultation.

During COVID-19, the Union used the Disaster Management Act, 2005 for nationwide directions, while States also used the Epidemic Diseases Act, 1897 and their public-health machinery. The arrangement displayed national coordination resting heavily on State implementation. The 2020 Farm Acts relied principally on Concurrent List Entry 33 concerning trade and commerce in foodstuffs, but affected agriculture and markets associated with State List Entries 14 and 28. Their enactment without adequate State consensus produced a competence-and-legitimacy dispute; their 2021 repeal showed political federalism correcting legislative centralisation.

The wider constitutional tilt includes Parliament's Articles 249, 250, 252 and 253 routes, residuary power under Article 248, Union directions and emergency provisions. Yet State List autonomy, Rajya Sabha, judicial review, Finance Commission transfers and the *S.R. Bommai (1994)* basic-structure limit prevent a general Union police power.

Thus, centralising capacity can protect unity during genuine externalities, but legitimacy depends on necessity, List competence, proportionality and prior intergovernmental consultation.

Why this earns marks

It addresses every named statute, connects each to the competence structure, supplies a counterweight and distinguishes constitutional coordination from unlimited centralisation.

How to improve this answer

In the exam, compress the examples to one line each and add a small Union capacity <-> State implementation diagram; do not analyse the merits of farm policy beyond the federal demand.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "The Indian Constitution exhibits centralising tendencies to maintain unity and integrity of the nation. Elucidate in the perspective of the Epidemic...".

Analytical body:

- Claim and named evidence:** PYQ 6 - UPSC GS-II 2020, Q11 - supporting/cross-owned **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- Claim and named evidence:** integrity of the nation. Elucidate in the perspective of the Epidemic Diseases Act, 1897, the **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

3. **Claim and named evidence:** Disaster Management Act, 2005 and the recently passed Farm Acts. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** laws, acknowledge the federal objection and give a graded verdict. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** India's holding-together federation equips the Union to coordinate threats crossing State **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "The Indian Constitution exhibits centralising tendencies to maintain unity and integrity of the nation. Elucidate in the perspective of the Epidemic..."

Executable exam-length answer / compression plan: For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

PYQ 7 - UPSC GS-II 2023, Q13 - supporting/cross-owned

Question: Account for the legal and political factors responsible for the reduced frequency of using Article 356 by the Union Governments since the mid-1990s. **15 marks | 250 words**

Demand decoding: Explain causation after the mid-1990s through both law and politics; do not merely describe Article 356 procedure.

Model solution

The decline in Article 356 use reflects the conversion of President's Rule from a broad political weapon into a reviewable exceptional remedy.

Legally, *S.R. Bommai (1994)* made federalism part of the Basic Structure, subjected proclamations to judicial review, preferred a floor test for disputed majority and permitted restoration after unconstitutional dismissal. The Court's insistence on relevant material, combined with later floor-test jurisprudence, raised the legal and reputational cost of partisan action. Article 355's Union duty cannot by itself prove the Article 356 threshold that government cannot be carried on according to the Constitution.

Politically, coalition governments and stronger regional parties after 1989 increased State bargaining power. A more competitive party system made dismissals electorally costly, while media scrutiny, civil society and an assertive judiciary strengthened accountability. The Sarkaria and Punchhi recommendations also reinforced the convention that Article 356 is a last resort after warnings and feasible alternatives.

Use has not disappeared: breakdowns, hung Houses and security crises may still trigger it. Therefore, the reduced frequency is best explained by legal discipline interacting with coalition-era political federalism, not by removal of the constitutional power.

Why this earns marks

It answers "account for" with two causal baskets, uses Article 355 as a close distinction, and ends with a qualified rather than absolute conclusion.

How to improve this answer

Use a two-column legal/political structure and reserve procedure details for one sentence; avoid unsupported counts of proclamations unless recalled from an authoritative source.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "Account for the legal and political factors responsible for the reduced frequency of using Article 356 by the Union Governments since the mid-1990s."

Analytical body:

1. **Claim and named evidence:** PYQ 7 - UPSC GS-II 2023, Q13 - supporting/cross-owned **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** of using Article 356 by the Union Governments since the mid-1990s. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** The decline in Article 356 use reflects the conversion of President's Rule from a broad political **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** Legally, S.R. Bommai (1994) made federalism part of the Basic Structure, subjected **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** proclamations to judicial review, preferred a floor test for disputed majority and permitted **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "Account for the legal and political factors responsible for the reduced frequency of using Article 356 by the Union Governments since the mid-1990s."

Executable exam-length answer / compression plan: For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

PYQ 8 - UPSC GS-II 2023, Q15 - supporting/cross-owned

Question: Explain the significance of the 101st Constitutional Amendment Act. To what extent does it reflect the accommodative spirit of federalism? **15 marks | 250 words**

Demand decoding: Explain the constitutional redesign and then evaluate, rather than merely celebrate, its accommodative character.

Model solution

The 101st Amendment restructured India's fiscal Constitution by creating a shared indirect-tax field instead of transferring the whole field to either level.

Article 246A gives Parliament and State legislatures simultaneous GST competence, while inter-State supplies remain with Parliament. Article 269A creates the levy-and-apportionment bridge for inter-State GST. Article 279A establishes the GST Council, where the Union holds one-third and States collectively two-thirds of weighted votes; a three-fourths majority means neither side can decide alone. The reform reduced cascading, supported a common market and replaced several separate Union and State taxes.

Its federalism is accommodative because both levels pooled pre-existing tax autonomy, States participate institutionally and the transition included compensation. The qualification is substantial: States lost unilateral rate flexibility, the Union can block the voting threshold, compensation disputes exposed unequal fiscal capacity and exclusions prevent a completely uniform base. In *Mohit Minerals (2022)*, the Supreme Court held Council recommendations non-binding, preserving legislative autonomy within cooperative dialogue.

Thus, the Amendment embodies negotiated, not hierarchical, federalism; accommodation depends on reasoned consultation and fair revenue adjustment in practice.

Why this earns marks

It uses the three-Article architecture, explains the voting safeguard, evaluates both autonomy and coordination, and deploys the controlling judgment.

How to improve this answer

Draw the 246A -> 269A -> 279A chain and keep compensation as a qualification, not the whole answer.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "Explain the significance of the 101st Constitutional Amendment Act. To what extent does it reflect the accommodative spirit of federalism?".

Analytical body:

- 1. Claim and named evidence:** PYQ 8 - UPSC GS-II 2023, Q15 - supporting/cross-owned **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 2. Claim and named evidence:** does it reflect the accommodative spirit of federalism? **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 3. Claim and named evidence:** The 101st Amendment restructured India's fiscal Constitution by creating a shared indirect-tax **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 4. Claim and named evidence:** field instead of transferring the whole field to either level. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 5. Claim and named evidence:** Article 246A gives Parliament and State legislatures simultaneous GST competence, while **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation,

regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "Explain the significance of the 101st Constitutional Amendment Act. To what extent does it reflect the accommodative spirit of federalism?".

Executable exam-length answer / compression plan: For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

PYQ 9 - UPSC GS-II 2024, Q13 - direct application

Question: What changes has the Union Government recently introduced in the domain of Centre-State relations? Suggest measures to be adopted to build the trust between the Centre and the States and for strengthening federalism. **15 marks | 250 words**

Demand decoding: Identify recent changes across more than one federal dimension, assess their trust effect and make institution-specific suggestions.

Model solution

Recent Centre-State relations combine greater rule-based coordination with new sites of mistrust. GST created a permanent shared-tax council and Finance Commission devolution remains the principal constitutional transfer route. NITI Aayog replaced plan allocation through the Planning Commission with a consultative platform. At the same time, cesses outside the divisible pool, centrally sponsored scheme conditions, borrowing controls, Governor-assent disputes and central- agency jurisdiction have generated claims of coercive federalism. Nationwide use of disaster powers and legislation touching State fields intensified the competence debate.

Trust requires process, predictability and neutral offices. The Inter-State Council should meet regularly with published follow-up; States should be consulted early on laws and schemes affecting List II. Finance Commission transfers and scheme shares should be predictable, with transparent cess data and a credible GST dispute mechanism. Governors should give prompt, reasoned decisions within the current Article 200 doctrine, without partisan delay. Article 356 must retain *S.R. Bommai (1994)* discipline, while central investigations should follow clear consent and accountability rules. Parliamentary committees and Rajya Sabha should scrutinise major federal measures.

India needs a capable Union, but capacity earns legitimacy when exercised through consultation. Cooperative federalism therefore requires institutionalised disagreement, not compelled unanimity.

Why this earns marks

It answers both limbs, covers legislative, administrative and fiscal change, and pairs each trust deficit with an executable institutional remedy.

How to improve this answer

Use a change -> trust deficit -> remedy table. Name only changes you can date or legally anchor; avoid turning the response into a list of political allegations.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "What changes has the Union Government recently introduced in the domain of Centre-State relations? Suggest measures to be adopted to build the trust...".

Analytical body:

- 1. Claim and named evidence:** PYQ 9 - UPSC GS-II 2024, Q13 - direct application **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

2. **Claim and named evidence:** Centre-State relations? Suggest measures to be adopted to build the trust between the Centre and **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** trust effect and make institution-specific suggestions. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** Recent Centre-State relations combine greater rule-based coordination with new sites of mistrust. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** GST created a permanent shared-tax council and Finance Commission devolution remains the principal **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "What changes has the Union Government recently introduced in the domain of Centre-State relations? Suggest measures to be adopted to build the trust...".

Executable exam-length answer / compression plan: For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

PYQ 10 - UPSC GS-II 2025, Q14 - direct application

Question: Examine the evolving pattern of Centre-State financial relations in the context of planned development in India. How far have the recent reforms impacted the fiscal federalism in India? **15 marks | 250 words**

Demand decoding: Trace the shift from plan-era discretion to the current mixed system, then judge how far reforms improved State autonomy and equalisation.

Model solution

Centre-State finance has moved from a dual system of constitutional Finance Commission transfers and Planning Commission plan assistance toward a more rule-based but still mixed architecture.

During planned development, discretionary plan grants and centrally sponsored schemes gave the Union substantial influence over State priorities. After the Planning Commission's replacement by NITI Aayog, Finance Commission devolution became more prominent. GST pooled major indirect-tax powers through Articles 246A, 269A and 279A, while Article 280 remains the equalisation mechanism. The Sixteenth Finance Commission's 2026-31 award retains 41% vertical devolution.

Reforms improved transparency, formula-based transfers and common-market coordination. States participate in GST decisions, and *Mohit Minerals (2022)* confirms that Council recommendations do not erase legislative autonomy. Yet vertical imbalance persists because States carry major service responsibilities while the Union controls buoyant bases. Cesses and surcharges outside the divisible pool, conditional schemes, unequal tax capacity and Article 293 borrowing constraints can narrow effective choice.

The impact is therefore significant but incomplete: India has shifted from plan discretion toward constitutionalised interdependence, not fiscal independence. Predictable scheme design, transparent cesses, stronger State tax capacity and regular Union-State consultation are needed.

Why this earns marks

It supplies chronology, Articles, a current Finance Commission anchor, benefits, limits and a clear "how far" verdict.

How to improve this answer

Use a three-stage timeline-Planning Commission, post-2015 devolution, GST/16th FC-and avoid quoting horizontal weights unless verified from the official report.

Original Mains practice with examiner-grade models

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "Examine the evolving pattern of Centre-State financial relations in the context of planned development in India. How far have the recent reforms...".

Analytical body:

1. **Claim and named evidence:** PYQ 10 - UPSC GS-II 2025, Q14 - direct application **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** planned development in India. How far have the recent reforms impacted the fiscal federalism in **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** judge how far reforms improved State autonomy and equalisation. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** Centre-State finance has moved from a dual system of constitutional Finance Commission transfers **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** and Planning Commission plan assistance toward a more rule-based but still mixed architecture. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "Examine the evolving pattern of Centre-State financial relations in the context of planned development in India. How far have the recent reforms...".

Executable exam-length answer / compression plan: For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

M1. 10 marks | 150 words

Question: Distinguish federalism from administrative decentralisation and explain why India remains federal despite a strong Union.

Demand decoding

- Define the legal test, then show both State autonomy and Union tilt.
- Use provisions plus one case; avoid label-only answers.

Model solution

Federalism constitutionally protects two levels; administrative decentralisation grants powers that the superior government may ordinarily withdraw.

India meets the federal test through a supreme written Constitution, dual polity, Seventh Schedule distribution, selective State ratification, judicial review and Rajya Sabha. States legislate directly on police, public health and agriculture; this is not Union delegation.

The Union is stronger: Parliament has residuary power, exceptional access to State subjects under Articles 249, 250, 252 and 253, territorial reorganisation power, integrated services and greater fiscal capacity. These features qualify rather than erase federalism because they are constitutionally limited and reviewable. *S.R. Bommai (1994)* makes federalism Basic Structure and disciplines Article 356.

India is therefore a holding-together, Union-weighted federation. The decisive test is protected State competence, not equal institutional weight.

Why this earns marks

It defines the distinction, proves both autonomy and Union tilt through Articles, and reaches a case-supported classification within 150 words.

How to improve this answer

Open with a two-line comparison and use only one Article cluster; do not reproduce all fourteen centralising features in a 10-marker.

Demand decoding: The directive **explain** requires a direct position on "Distinguish federalism from administrative decentralisation and explain why India remains...", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "Distinguish federalism from administrative decentralisation and explain why India remains federal despite a strong Union.".

Analytical body:

1. **Claim and named evidence:** Define the legal test, then show both State autonomy and Union tilt. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** Use provisions plus one case; avoid label-only answers. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** Federalism constitutionally protects two levels; administrative decentralisation grants powers **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** that the superior government may ordinarily withdraw. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** India meets the federal test through a supreme written Constitution, dual polity, Seventh Schedule **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "Distinguish federalism from administrative decentralisation and explain why India remains federal despite a strong Union."

Executable exam-length answer / compression plan: For a 10-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise three points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

M2. 10 marks | 150 words

Question: Explain how the doctrines of pith and substance, repugnancy and harmonious construction maintain the federal distribution of legislative power.

Demand decoding: Define each doctrine's distinct job, show their sequence in resolving overlap and include the Article 254 qualification.

Model solution

The Seventh Schedule distributes subjects, but modern laws inevitably overlap. Constitutional doctrines preserve workable federalism without making every incidental encroachment fatal.

Pith and substance identifies a law's true nature. If its dominant character lies within the enacting legislature's field, incidental impact on another List does not invalidate it. **Harmonious construction** reads entries broadly yet seeks to reconcile them so that each retains meaningful operation. **Repugnancy**, principally under Article 254, resolves an irreconcilable conflict between parliamentary and State laws on a Concurrent subject: parliamentary law ordinarily prevails. A reserved State law receiving Presidential assent may operate within that State, though Parliament can later override it.

Together, the doctrines combine autonomy with national coherence. Pith and substance prevents rigid compartmentalisation; harmonious construction reduces avoidable collision; repugnancy supplies a final rule where coexistence is impossible.

The qualification is important: Article 254 is not a universal conflict rule, and judicial interpretation cannot create legislative competence absent from the Constitution.

Why this earns marks

It distinguishes three doctrines, explains how each preserves workable allocation and states the Concurrent-List limit on repugnancy.

How to improve this answer

Present the sequence as characterise -> reconcile -> resolve; if space permits, add one verified case name rather than another abstract definition.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "Explain how the doctrines of pith and substance, repugnancy and harmonious construction maintain the federal distribution of legislative power."

Analytical body:

- Claim and named evidence:** The Seventh Schedule distributes subjects, but modern laws inevitably overlap. Constitutional doctrines preserve workable federalism without making every incidental encroachment fatal. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- Claim and named evidence:** The qualification is important: Article 254 is not a universal conflict rule, and judicial interpretation cannot create legislative competence absent from the Constitution. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- Claim and named evidence:** It distinguishes three doctrines, explains how each preserves workable allocation and states the **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism ->

differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

4. **Claim and named evidence:** Present the sequence as characterise -> reconcile -> resolve ; if space permits, add one verified **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

5. **Claim and named evidence:** case name rather than another abstract definition. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "Explain how the doctrines of pith and substance, repugnancy and harmonious construction maintain the federal distribution of legislative power."

Executable exam-length answer / compression plan: For a 10-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise three points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

M3. 15 marks | 250 words

Question: Indian federalism is cooperative in design, bargaining in operation and sometimes coercive in effect. Discuss.

Demand decoding: Test all three labels with institutions and examples, then determine how they coexist without treating every Union standard as coercive.

Model solution

India's Constitution combines separate spheres with institutions requiring continuing interaction. The resulting federation cannot be captured by one adjective.

Cooperative in design: The GST Council, Finance Commission, Inter-State Council, Rajya Sabha's Articles 249 and 312 roles, centrally supported programmes and disaster coordination require joint action. Granville Austin's cooperative federalism captures this nation-building architecture.

Bargaining in operation: Union-State outcomes depend on party alignment, coalition arithmetic, Finance Commission submissions, scheme negotiations and fiscal capacity. Morris-Jones's label explains why formal Union superiority does not always determine practical outcomes.

Sometimes coercive in effect: Conditional grants, Union directions, Governor controversies, deployment of central agencies and large vertical fiscal imbalance can narrow State choice. Cesses and scheme contributions may increase perceived dependence. Yet not every national standard is coercive; common markets, rights and externalities can justify coordination.

Confrontation is also constitutionalised. States litigate under Article 131, withdraw CBI general consent, contest tax arrangements and mobilise politically. *S.R. Bommai (1994)* ensures that Union strength cannot erase the federal basic structure. *Mohit Minerals (2022)* similarly treats the GST Council as recommendatory, preserving legislative autonomy within collaboration.

Therefore, Indian federalism is a negotiated continuum. Cooperation is its institutional aspiration, bargaining its daily method and coercion its recurrent risk. Regular consultation, transparent transfers and neutral constitutional offices are needed to keep Union capacity from becoming domination.

Why this earns marks

It evaluates three analytical labels with named institutions, includes a counterpoint and gives a graded verdict plus reforms.

How to improve this answer

Use a three-column comparison and attach one constitutional anchor to each mode; avoid repeating the same Governor/GST example under multiple headings.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "Indian federalism is cooperative in design, bargaining in operation and sometimes coercive in effect. Discuss."

Analytical body:

1. **Claim and named evidence:** coexist without treating every Union standard as coercive. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** India's Constitution combines separate spheres with institutions requiring continuing interaction. The resulting federation cannot be captured by one adjective. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** It evaluates three analytical labels with named institutions, includes a counterpoint and gives a **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** Use a three-column comparison and attach one constitutional anchor to each mode; avoid repeating **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** the same Governor/GST example under multiple headings. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "Indian federalism is cooperative in design, bargaining in operation and sometimes coercive in effect. Discuss."

Executable exam-length answer / compression plan: For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

M4. 15 marks | 250 words

Question: Critically examine the role of the Governor in India's federal system in the light of the current law on assent to State Bills.

Demand decoding: Balance constitutional headship against federal friction, state the current Article 200 doctrine precisely and suggest convention-based as well as legal correctives.

Model solution

The Governor links constitutional headship, State government and the Union, making the office both necessary and conflict-prone.

The federal concern begins with appointment by the President and tenure during presidential pleasure. Discretion in government formation, reports under Article 356 and reservation of Bills can be perceived as Union leverage, especially under opposing parties. Delayed assent can disable a State legislature without openly rejecting its policy.

The controlling Constitution Bench advisory opinion of 20 November 2025 recalibrates Article 200. Courts cannot impose fixed timelines or create deemed assent, and they cannot substitute their own choice for the Governor's. However, prolonged unexplained inaction is not a constitutional pocket veto; limited judicial intervention may require the Governor to act without dictating assent, return, withholding or reservation.

The position protects decisional space but creates a higher duty of constitutional statesmanship. Reasons, prompt communication and fidelity to the elected government's legislative mandate are central to legitimacy. *S.R. Bommai (1994)* also requires gubernatorial action affecting State government to remain reviewable and ordinarily favours floor testing of majority.

Reform should emphasise politically detached appointments, consultation with the Chief Minister, secure conventions, publicly reasoned action and compliance with Sarkaria/Punchhi norms.

Thus, the Governor should be a constitutional sentinel and mediator, not a parallel executive or partisan gatekeeper. Federal balance depends as much on convention and restraint as on justiciable rules.

Why this earns marks

It identifies the source of federal concern, states the controlling 2025 opinion without deemed- assent error, and balances review with constitutional discretion.

How to improve this answer

Keep government formation, Article 356 and assent as three separate functions; spend most space on assent because the question expressly demands it.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "Critically examine the role of the Governor in India's federal system in the light of the current law on assent to State Bills."

Analytical body:

1. **Claim and named evidence:** Article 200 doctrine precisely and suggest convention-based as well as legal correctives. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** The Governor links constitutional headship, State government and the Union, making the office both necessary and conflict-prone. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** Reform should emphasise politically detached appointments, consultation with the Chief Minister, secure conventions, publicly reasoned action and compliance with Sarkaria/Punchhi norms. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** Thus, the Governor should be a constitutional sentinel and mediator, not a parallel executive or partisan gatekeeper. Federal balance depends as much on convention and restraint as on justiciable rules. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** It identifies the source of federal concern, states the controlling 2025 opinion without deemed **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "Critically examine the role of the Governor in India's federal system in the light of the current law on assent to State Bills."

Executable exam-length answer / compression plan: For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

M5. 20 marks | 250-300 words

Question: Evaluate whether fiscal federalism in India provides States meaningful autonomy or primarily produces transfer dependence.

Demand decoding: Establish a test for meaningful fiscal autonomy, weigh own-source and transfer institutions against dependence, and deliver an extent-based verdict.

Model solution

Meaningful federal autonomy requires both legal competence and usable fiscal capacity. India gives States major responsibilities but combines them with substantial dependence on Union transfers.

Autonomy: States possess assigned taxes, borrow within constitutional rules, set expenditure priorities and receive a constitutionally structured share of the divisible pool. The Finance Commission is an independent periodic mechanism rather than a discretionary executive grant alone. GST gives States a voice in common-market taxation through the GST Council. The 16th Finance Commission retains 41% vertical devolution for 2026-31.

Dependence: The Union controls broad and buoyant tax bases, while States finance health, police, agriculture and welfare delivery. Cesses and surcharges lie outside the divisible pool, reducing the effective shareable base. Centrally sponsored schemes may impose design conditions and matching contributions. Unequal State tax capacity also means formal autonomy yields unequal outcomes.

Balancing devices: Horizontal devolution pursues equalisation through need, population, demographic performance, area, ecology and contribution-related criteria. Grants can address externalities and local-body capacity. *Mohit Minerals (2022)* protects legislative autonomy by holding GST Council recommendations non-binding.

However, dependence is not inherently anti-federal: redistribution and national standards can secure equal citizenship. It becomes coercive when conditions are opaque, consultation weak or States cannot exit without sacrificing essential services.

India therefore has constitutionally mediated interdependence, not fiscal independence. Greater transparency on cesses, predictable scheme shares, stronger State tax administration, a robust GST dispute mechanism and regular intergovernmental consultation would convert transfer dependence into accountable shared finance.

Why this earns marks

It balances autonomy and dependence, uses Articles and current 16th Finance Commission evidence, and explains when redistribution becomes coercive.

How to improve this answer

Add an own revenue / shared revenue / grants / borrowing matrix; avoid unverified percentages other than the official 41% vertical award.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "Evaluate whether fiscal federalism in India provides States meaningful autonomy or primarily produces transfer dependence."

Analytical body:

- 1. Claim and named evidence:** institutions against dependence, and deliver an extent-based verdict. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 2. Claim and named evidence:** Meaningful federal autonomy requires both legal competence and usable fiscal capacity. India gives States major responsibilities but combines them with substantial dependence on Union

transfers. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

3. **Claim and named evidence:** It balances autonomy and dependence, uses Articles and current 16th Finance Commission evidence, **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** and explains when redistribution becomes coercive. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** Add an own revenue / shared revenue / grants / borrowing matrix; avoid unverified percentages **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "Evaluate whether fiscal federalism in India provides States meaningful autonomy or primarily produces transfer dependence."

Executable exam-length answer / compression plan: For a 20-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise six to eight points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

M6. 20 marks | 250-300 words

Question: Delimitation after a new Census presents a conflict between democratic equality and federal fairness. Analyse.

Demand decoding: Explain both constitutional values, identify the current legal sequence and propose safeguards without forecasting seats or implementation dates.

Model solution

Delimitation seeks broadly equal population representation, but long-term demographic divergence turns that democratic principle into a federal conflict.

Democratic-equality case: Constituency populations should not diverge indefinitely. Updated allocation can reduce unequal vote weight, improve constituency manageability and reflect migration and urbanisation. A larger House may also lower the citizen-representative ratio.

Federal-fairness concern: States that successfully reduced fertility fear losing relative influence to higher-growth States. Representation affects Union governments, fiscal bargaining and constitutional amendment politics. A purely population-driven redistribution may therefore appear to punish policy success and alter the original political balance.

Constitutional setting: Articles 81 and 82 govern representation and readjustment, while constitutional amendments created the seat freeze. Rajya Sabha already uses unequal State representation, so Lok Sabha change affects both popular and federal power. Article 334A also links operational women's reservation to a post-commencement census and subsequent delimitation.

Current control: The 2026 constitutional-delimitation package was defeated; its proposed 850-seat ceiling is not law. Census conduct dates do not supply a publication or delimitation date, and State-wise seat projections are speculative.

Possible principles: increase total seats to reduce zero-sum loss; protect a floor of relative State representation for a transition; reward demographic performance through transparent criteria; strengthen Rajya Sabha's federal role; and secure broad inter-State consultation before amendment.

The solution cannot be arithmetic alone. Democratic equality requires updated representation, but federal legitimacy requires that population stabilisation not translate into abrupt political dispossession. A negotiated constitutional bargain is therefore essential.

Why this earns marks

It treats delimitation as a two-value constitutional conflict, uses Articles 81/82/334A, dates the defeated proposal and avoids speculative projections.

How to improve this answer

Draw a balance scale labelled vote equality and federal fairness; clearly separate current law, the defeated 2026 proposal and your reform suggestions.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "Delimitation after a new Census presents a conflict between democratic equality and federal fairness. Analyse."

Analytical body:

1. **Claim and named evidence:** propose safeguards without forecasting seats or implementation dates. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** Delimitation seeks broadly equal population representation, but long-term demographic divergence turns that democratic principle into a federal conflict. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** It treats delimitation as a two-value constitutional conflict, uses Articles 81/82/334A, dates the **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** defeated proposal and avoids speculative projections. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** Draw a balance scale labelled vote equality and federal fairness ; clearly separate current law, **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "Delimitation after a new Census presents a conflict between democratic equality and federal fairness. Analyse."

Executable exam-length answer / compression plan: For a 20-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise six to eight points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

M7. 20 marks | 250-300 words

Question: Does the combination of regional parties, judicial review and intergovernmental councils adequately counterbalance India's centralising constitutional design?

Demand decoding: Evaluate each counterweight's mechanism and limitation, then answer "adequately" through a graded institutional verdict.

Model solution

India's Constitution gives the Union substantial power, but political and institutional safeguards often decentralise its operation.

Regional parties articulate State-specific fiscal, linguistic and developmental interests. Coalition eras enabled them to bargain over ministries, schemes and national policy. Yet their influence depends on electoral arithmetic; they may also centralise power within their States.

Judicial review supplies a legal boundary. *S.R. Bommai (1994)* makes federalism Basic Structure and reviews Article 356; competence doctrines protect State laws from invalidation for incidental overlap; Article 131 provides an original forum for specified Union-State disputes. Courts, however, cannot replace continuous political negotiation and may defer in policy-heavy fields.

Councils and commissions institutionalise shared rule. The GST Council, Finance Commission, Inter-State Council and Zonal Councils permit information exchange, bargaining and coordination. *Mohit Minerals (2022)* preserves autonomy by treating GST Council recommendations as recommendatory. Weaknesses include irregular meetings, executive dominance, non-binding recommendations and unequal fiscal leverage.

These safeguards are meaningful but uneven. A single-party Union majority reduces coalition bargaining; councils can become consultative rituals; litigation is slow and adversarial. Governors, central agencies, conditional schemes and cesses can still generate coercive effects.

Therefore, the counterbalance is adequate to prevent easy destruction of federalism but not always adequate to ensure equal participation. Regular council meetings, reasoned decisions, stronger parliamentary scrutiny, neutral Governors, transparent transfers and better State capacity are required. India's federal equilibrium is maintained through repeated political contestation, not by constitutional text alone.

Why this earns marks

It tests three distinct counterweights, supplies limits for each and answers adequacy rather than merely listing institutions.

How to improve this answer

Allocate one short paragraph to each counterweight and one comparative paragraph to their combined effect; avoid treating non-binding councils as legally co-equal with courts.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "Does the combination of regional parties, judicial review and intergovernmental councils adequately counterbalance India's centralising...".

Analytical body:

- Claim and named evidence:** "adequately" through a graded institutional verdict. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- Claim and named evidence:** India's Constitution gives the Union substantial power, but political and institutional safeguards often decentralise its operation. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- Claim and named evidence:** It tests three distinct counterweights, supplies limits for each and answers adequacy rather than **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- Claim and named evidence:** Allocate one short paragraph to each counterweight and one comparative paragraph to their combined **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

5. **Claim and named evidence:** effect; avoid treating non-binding councils as legally co-equal with courts.

Analysis: Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "Does the combination of regional parties, judicial review and intergovernmental councils adequately counterbalance India's centralising...".

Executable exam-length answer / compression plan: For a 20-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise six to eight points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

14. Advanced classifications and scholars - optional

Scholar toolkit

Scholar / label	Use	Limit
K.C. Wheare - quasi-federal / unitary features	Opens the strong-Centre debate	Do not stop at the label; Basic Structure and practice matter
Granville Austin - cooperative federalism	Explains shared national transformation	Cooperation may coexist with conflict
Morris-Jones - bargaining federalism	Captures negotiated politics	Bargaining power is unequal
Paul Appleby - extremely federal	Corrects excessive quasi-federal shorthand	A historical analytical view, not doctrine
Ivor Jennings - federation with strong centralising policy	Connects design to nation-building	Avoid treating all central policy as anti-federal
Louise Tillin - asymmetry and territorial accommodation	Adds contemporary analytical depth	Use only after constitutional examples

Four deeper ideas

1. **Political federalism:** party competition, coalition arithmetic and regional parties can decentralise or centralise actual power without textual amendment.
2. **Executive federalism:** much coordination occurs among executives and officials, which can improve speed but weaken legislative transparency.
3. **Multi-level federalism:** local governments complicate a simple Union-State binary even though Parts IX and IX-A do not create co-equal sovereign units.
4. **Dialogic federalism:** councils, commissions, courts and elections create repeated exchanges rather than one final allocation of every dispute.

National parties and regional parties

- [ANALYSIS] The 2022 GS-II proposition is broadly plausible as an incentive pattern, not an ideological law.
- National parties controlling the Union may prefer uniformity and central leverage; regional parties may seek fiscal and administrative autonomy.
- Counterevidence matters: national parties demand autonomy when in State opposition; regional parties can centralise within their States; coalition governments led by national parties strengthened State bargaining.
- Best verdict: **institutional location and electoral incentives often explain federal preference better than party label alone.**

CONSOLIDATED REGISTER NOTES

Federal identity

- Federation = constitutionally protected Union and regional authority, each acting directly in assigned spheres.
- Unitary devolution = regional power legally revocable by the centre.
- Confederation = treaty association of sovereign members; not India.
- India = holding-together, Union-weighted federation; Article 1 "Union of States."
- No compact-based secession right; Parliament can reorganise States through Articles 2-4.

Seven federal features

1. Dual polity.
2. Written Constitution.
3. Seventh Schedule division.
4. Constitutional supremacy.
5. Selective rigidity and State ratification.
6. Independent judiciary.
7. Bicameral State representation.

Centralising recall

- Strong Union List; residuary power with Parliament.
- Parliament enters State field: 249, 250, 252, 253, 356.
- State reorganisation by Parliament.
- Single Constitution and citizenship.
- Integrated judiciary, CAG and Election Commission.
- Governors and All-India Services.
- Union directions and emergency provisions.
- Union fiscal strength and transfer dependence.
- Rajya Sabha representation unequal by State.

Legislative architecture

Provision	Recall
245	Territorial extent; extra-territorial parliamentary operation
246	Union/Concurrent/State hierarchy
246A	GST special competence
248 + UL 97	Residuary power with Parliament
249	Rajya Sabha national-interest route
250	Emergency route; six-month tail
252	State-request route; Parliament amends/repeals
253	Treaty implementation
254	Concurrent repugnancy and Presidential-assent exception

- Standard counts: **100 / 61 / 52**.
- Pith and substance = true nature; incidental overlap allowed.
- Colourable legislation = indirect competence evasion invalid.
- Territorial nexus = real connection required.

- Harmonious construction = preserve operation of entries.
- Repugnancy = Concurrent conflict, not universal conflict rule.

Case strip

- *State of West Bengal v Union* (1962): not a compact of sovereign States.
- *Kesavananda Bharati* (1973): Basic Structure limitation.
- *Rajasthan v Union* (1977): strong-Union context.
- *S.R. Bommai* (1994): federalism Basic Structure; Article 356 review; floor-test logic.
- *Kuldip Nayar* (2006): residence requirement not indispensable to Indian federalism.
- *Mohit Minerals* (2022): GST Council recommendations not binding.
- *West Bengal v Union* (2024): CBI-consent Article 131 suit maintainable; merits not finally decided by that ruling.

Operating modes

- Cooperative = joint institutions and implementation.
- Competitive = State innovation/investment competition.
- Bargaining = negotiated transfers and political concessions.
- Coercive = superior leverage narrows effective choice.
- Confrontational = litigation, consent withdrawal and political resistance.
- Granville Austin = cooperative; Morris-Jones = bargaining; Wheare = quasi-federal debate.
- Best verdict: modes coexist; institutions must keep conflict constitutional.

Shared-rule institutions

- ISC Article 263.
- Zonal Councils statutory.
- GST Council Article 279A.
- Finance Commission Article 280.
- Rajya Sabha Articles 249 and 312.
- NITI Aayog executive platform.
- Supreme Court legal umpire and Article 131 forum.

Asymmetry

- Fifth Schedule = Scheduled Areas outside four Sixth Schedule States.
- Sixth Schedule = autonomous councils in Assam, Meghalaya, Tripura, Mizoram.
- Article 371 family = State-specific arrangements.
- Differentiated UT design also reflects asymmetry.
- Purpose = accommodation, identity protection and integration; not unequal citizenship.

Fiscal federalism

- Vertical imbalance = Union revenue strength versus State spending responsibilities.
- Administrative bridge = Articles 256-263: compliance/directions, reciprocal delegation, full faith and credit, water-dispute law and Inter-State Council consultation.
- Article 355 creates a Union duty; Articles 356-357 provide a reviewable exceptional remedy.
- Instruments = Articles 268/269/269A assignment, Article 270 divisible pool, Articles 275/282 grants, Articles 280-281 Finance Commission, Article 293 borrowing and GST.
- 16th FC: report submitted 17 Nov 2025; 41% of divisible pool for States in 2026-31.
- Cesses/surcharges outside divisible pool are a recurring State grievance.
- Autonomy requires predictable finance, not merely List II competence.

Current control

- Governor assent: 20 Nov 2025 opinion; no fixed judicial timelines, no deemed assent, prolonged inaction reviewable through direction to act.
- CBI: Section 6 DSPE consent ordinarily required; constitutional courts can order probes.
- 131st Amendment/delimitation package: defeated proposal; 850 not law.
- Census enumeration/reference dates are not publication/delimitation dates.
- 106th Amendment commencement does not mean women's reservation is operational.

PYQ routes

- 2020 GS-II Q3: cooperation + competition + confrontation -> simultaneous modes + S.R. Bommai (1994) verdict.
- 2021 GS-II Q11: Section 6 consent + court exception + federal balance.
- 2022 GS-II Q13: qualified party-incentive thesis.
- 2021 Prelims Q86: independent judiciary as essential federal feature.
- 2023 Prelims Q32: prisons in State List; colonial Act is not constitutional explanation.
- 2020 GS-II Q11: centralising laws -> competence + consultation + political correction.
- 2023 GS-II Q13: reduced Article 356 use -> S.R. Bommai (1994) + coalition/party federalism.
- 2023 GS-II Q15: Articles 246A/269A/279A -> accommodative but unequal GST federalism.
- 2024 GS-II Q13: recent changes -> trust deficits paired with institutional remedies.
- 2025 GS-II Q14: plan discretion -> rule-based devolution/GST -> persistent dependence.

Mains answer spines

Nature question: definition -> seven federal -> Union tilt -> S.R. Bommai (1994) -> qualified classification.

Working question: modes -> institutions -> examples -> coercive risk -> constitutionalised-conflict verdict.

Legislative question: Articles -> Lists -> exceptions -> doctrines -> case -> federal balance.

Current friction: verified status -> constitutional rule -> competing values -> institution/reform -> no speculative date.

Final trap checklist

- Federalism does not require equal State representation.
- "Union of States" does not make States administrative units.
- Residuary power is with Parliament.
- Article 254 principally concerns Concurrent List repugnancy.
- Article 249 uses Rajya Sabha; Article 252 starts with State resolutions.
- Article 253 can reach State subjects for treaty implementation.
- Article 256 directions are compliance-specific, not a general takeover power.
- Article 262 permits Parliament to exclude jurisdiction by law; exclusion is not automatic.
- Article 355 duty does not automatically satisfy Article 356.
- S.R. Bommai (1994) does not create State sovereignty or secession.
- GST Council recommendations are not binding.
- Governor assent has no current deemed-assent rule.
- Court-ordered CBI investigation does not require State consent.
- Use 100/61/52 standard counts.
- The 2026 850-seat proposal was defeated and is not law.
- Census conduct dates do not prove publication or delimitation dates.
- Core is complete; Advanced scholars are optional enrichment.

COMPLETE TOPIC ASCII MASTER FLOW DIAGRAM

ASCII MASTER FLOW - PANEL 1/12: Federal test, formation and territory

FEDERAL TEST

- Constitution protects Union and State authority in assigned spheres
- both levels act directly on citizens; neither is an ordinary delegate
- one sovereign constitutional order; no unilateral State secession

INDIAN FORMATION

- Article 1: Union of States; holding-together, Union-weighted design
- Article 3: presidential recommendation + State views, not State consent
- Article 4: reorganisation law is not an Article 368 amendment

MUST REMEMBER: Test federalism through dual government, constitutional distribution, supremacy, rigidity, independent courts and bicameral representation, then map the Union tilt through Articles 3, 248-253, 256-257, 312, 352-356 and integrated constitutional institutions.

ASCII MASTER FLOW - PANEL 2/12: Federal features and Union bias

FEDERAL FEATURES

- dual polity + written supreme Constitution + Seventh Schedule
- selective rigidity + independent judiciary + Rajya Sabha

UNION BIAS

- residuary power + State-field exceptions + emergencies
- integrated services + single citizenship + greater fiscal capacity

VERDICT: constitutionally federal and Union-weighted, not unitary in spirit.

ASCII MASTER FLOW - PANEL 3/12: Legislative distribution and conflict

ARTICLES 245-246: territorial reach + three-List allocation

- Union 100 | State 61 | Concurrent 52: standard exam counts
- 246A: GST competence | 248 + Entry 97: parliamentary residuary power

CONFLICT METHOD

- pith and substance -> true nature
- harmonious construction -> reconcile overlap
- Article 254 -> Concurrent conflict only; assent may save State law locally

ASCII MASTER FLOW - PANEL 4/12: Parliament entering the State field

STATE-FIELD DOORS

- 249: Rajya Sabha, two-thirds present/voting, national interest
- 250: Article 352 Emergency; law survives six months after it ends
- 252: two or more States request; Parliament controls amendment/repeal
- 253: treaty implementation; still subject to the Constitution
- 356-357: affected State during President's Rule; S.R. Bommai (1994) review

TRAP: no general Union power to legislate on List II.

ASCII MASTER FLOW - PANEL 5/12: Administrative relations

ARTICLES 256-257

- secure compliance and prevent impedance of Union executive power
- directions are text-bounded, not a general administrative takeover

RECIPROCAL DELEGATION

- 258: Union functions -> State with consent
- 258A: State functions -> Union with Union consent

261 full faith/credit | 262 water-dispute law | 263 Inter-State Council

ASCII MASTER FLOW - PANEL 6/12: Financial distribution and fiscal autonomy

FISCAL CONSTITUTION

- 268/269/269A: levy, collection, assignment and IGST apportionment
- 270: divisible pool | 275 and 282: distinct grant routes
- 280-281: Finance Commission report | 293: conditional borrowing consent

16TH FINANCE COMMISSION

- report submitted 17 Nov 2025 | award 2026-31
- States: 41% vertical share; exact horizontal weights need official report

CLOSE DISTINCTION: Article 1's 'Union of States' rejects a secession compact but does not make India unitary. Federalism is basic structure; the Union may be stronger and States territorially alterable while each level retains constitutionally assigned fields.

ASCII MASTER FLOW - PANEL 7/12: Basic Structure and emergency control

CASE CHAIN

- West Bengal (1962): no sovereign-State compact
- Kesavananda Bharati (1973): limited amendment power
- S.R. Bommai (1994): federalism Basic Structure; Article 356 review

DUTY != REMEDY

- Article 355: protect States and ensure constitutional government
- Articles 356-357: exceptional remedy + legislative consequence
- disputed majority ordinarily belongs on the House floor
- State of Rajasthan v. Union of India (1977): cautious pre-S.R. Bommai (1994) review

ASCII MASTER FLOW - PANEL 8/12: Working modes and shared-rule institutions

MODES COEXIST

- cooperative: GST, transfers, disaster coordination
- competitive: investment, innovation, outcome improvement
- bargaining: parties, schemes, fiscal negotiation
- confrontational: assent, CBI, water, tax and borrowing disputes

CHANNELS: Rajya Sabha + ISC + Zonal Councils + GST Council + FC + courts

HEALTH TEST: conflict becomes reasons, negotiation and adjudication.

- Mohit Minerals (2022): GST Council advice is non-binding

2024 West Bengal ruling (2024 INSC 502): Article 131 suit survived preliminary objections; CBI-consent merits were not decided.

ASCII MASTER FLOW - PANEL 9/12: Asymmetric federalism

ASYMMETRY = DIFFERENTIATED CONSTITUTIONAL ACCOMMODATION

- Fifth Schedule: Scheduled Areas + Governor/TAC safeguards
- Sixth Schedule: tribal areas in four States + autonomous councils
- Article 371 family + differentiated Union-Territory arrangements
- Article 239AA illustrates a distinct capital-territory design

LIMIT: common citizenship continues; asymmetry is not arbitrary inequality.

ASCII MASTER FLOW - PANEL 10/12: Representation and current controls

REPRESENTATION

- Rajya Sabha gives unequal State representation; Lok Sabha tracks population
- 131st Bill: negatived 17 Apr 2026, 298-230; proposed 850 is not law
- Census conduct/reference dates != publication or delimitation dates

CURRENT FRICTION

- Governor assent: no fixed timeline/deemed assent; prolonged silence reviewable
- CBI: State consent rule; constitutional-court exception

ASCII MASTER FLOW - PANEL 11/12: Verified PYQs and Prelims traps

TEN ROUTES

- 2020: modes + centralising laws | 2021: CBI + federal essence
- 2022: party incentives | 2023: Article 356 + GST + prisons
- 2024: Centre-State trust | 2025: fiscal federalism

TRAPS

- Article 254 is Concurrent-specific | 262 exclusion needs parliamentary law
- Article 355 is not automatic 356 | GST recommendations are non-binding
- State competence is autonomous, not sovereign

ASCII MASTER FLOW - PANEL 12/12: Marks-scaled answer spine

10 MARKS: define -> one Article cluster -> one case -> qualified verdict

15 MARKS: add mechanisms -> named evidence -> counterpoint -> specific reform

20 MARKS: integrate asymmetry + representation + current control -> graded verdict

MASTER SPINE

- definition -> allocation -> administration/finance -> operation -> evidence
- > limitation -> reform -> conclusion

VERDICT: Union capacity earns federal legitimacy through consultation and restraint.

LEGAL/SOURCE LIMIT: Current federal claims must distinguish enacted law, advisory judgments and failed proposals: the 2025 Article 143 opinion controls assent, the 16th Finance Commission retains 41 percent vertical devolution, and the defeated 131st Amendment Bill, 2026 never amended the Constitution.